

NATIONAL SECURITY AGREEMENT

This National Security Agreement (the “Agreement” or “NSA”) is made as of the date of the last signature affixed hereto, by and between SES S.A. and its Affiliates (collectively “SES” or “Licensee”) on the one hand, and the Committee for the Assessment of Foreign Participation in the United States Telecommunications Services Sector (the “Committee”), the U.S. Department of Homeland Security (“DHS”), the U.S. Department of Justice (“DOJ”), and the U.S. Department of Defense (“DoD”) (collectively, the “Compliance Monitoring Agencies” or “CMAs”), on the other hand.

RECITALS

WHEREAS, pursuant to Section 310(d) of the Communications Act of 1934, Licensee filed a series of applications with the Federal Communications Commission (“FCC”) for consent to the transfer of control to SES of all the FCC licenses and authorizations held by Intelsat S.A.’s subsidiaries (collectively “Intelsat,” and together with SES, the “Parties”) (the “Applications”) in connection with a Share Purchase Agreement between the Parties dated May 1, 2024 (the “Transaction”).¹

WHEREAS, under Section 310 of Title 47 of the U.S. Code, no construction permit or station license, or any rights thereunder, shall be transferred, assigned, or disposed of in any manner, voluntarily or involuntarily, directly or indirectly, or by transfer of control of any corporation holding such permit or license, to any person except upon application to the Commission and upon finding by the Commission that the public interest, convenience, and necessity will be served thereby.

WHEREAS, on September 30, 2024, the FCC referred the Applications to the Committee and the Committee has undertaken a review of the Applications pursuant to Section 5 of Executive Order 13913, 85 Fed. Reg. 19643 (Apr. 8, 2020) (“E.O. 13913”) to evaluate whether granting the requested transfer of control may pose a risk to the national security and law enforcement interests of the United States;

WHEREAS, the Committee has also undertaken a review of SES’s pre-existing licenses and authorizations pursuant to Section 6 of E.O. 13913 to identify any additional or new risks to national security or law enforcement interests of the United States;

WHEREAS, United States communications systems are essential to the ability of the United States government to fulfill its responsibilities to the public to preserve the national security of the United States, to enforce the laws, and to maintain the safety of the public;

WHEREAS, the United States government has an obligation to its citizens to ensure that United States communications and related information are secure in order to protect the privacy of United States persons and to enforce the laws of the United States;

¹ FCC docket and file numbers associated with the Applications include SB Docket No. 24-267; SAT-T/C-20240530-00116; SAT-T/C-20240530-00117; SAT-MPL-20240809-00176; SAT-MPL-20240809-00177; SAT-MPL-20240809-00178; SAT-MPL-20240809-00179; SES-T/C-20240530-01222; and SES-T/C-20240603-01221.

WHEREAS, it is critical to the well-being of the United States and its citizens to maintain the viability, integrity, and security of the communications systems of the United States (*see e.g.*, Critical Infrastructure Protection in the Information Age, Executive Order 13231, as amended; and Presidential Policy Directive/PPD-21, Critical Infrastructure Security and Resilience);

WHEREAS, the President of the United States has determined that “foreign adversaries are increasingly creating and exploiting vulnerabilities in information and communications technology and services, which store and communicate vast amounts of sensitive information, facilitate the digital economy, and support critical infrastructure and vital emergency services, in order to commit malicious cyber-enabled actions, including economic and industrial espionage against the United States and its people.” Securing the Information and Communications Technology and Services Supply Chain, Executive Order 13873, 84 Fed. Reg. 22,689 (May 15, 2019);

WHEREAS, the Committee has determined, based on a risk-based analysis, as required by Section 9(c) of EO 13913, that it is necessary to enter into this NSA with Licensee to mitigate risk to U.S. national security and law enforcement interests raised by the Applications and the review of SES’s existing licenses and authorizations;

WHEREAS, Licensee certifies as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements the Parties have made to DHS, DOJ (including the Federal Bureau of Investigation), DoD, and the FCC in the course of the review of the Applications that the Committee conducted pursuant to Executive Order 13913;

WHEREAS, Licensee hereby adopts those statements as the basis for this NSA; and

WHEREAS, Licensee agrees and understands that upon execution of this NSA, the Committee will petition the FCC to condition all SES’s new and pre-existing licenses and authorizations on Licensee’s compliance with this NSA.

WHEREAS, Intelsat’s pre-existing licenses and authorizations are subject to a January 18, 2022 mitigation agreement with DHS, DOD, and DOJ (“Intelsat’s previous mitigation agreement”).² SES’s pre-existing licenses authorizations are presently subject to a 2001 mitigation agreement (amended in 2004 and 2006) with DOJ, DOD, and DHS (“SES’s previous mitigation agreement”). On the Effective Date this Agreement will supersede and replace SES and Intelsat’s previous mitigation agreements in their entirety.

² TT 21-047 to -060; Intelsat S.A. FCC file numbers for the applications associated with SES’s previous mitigation agreement include SES-T/C-20060106-00013; SAT-PPL-20060106-00003; SES-ASG-20040503-00672; SES-ASG-20040503-00673; (0001685559); SAT-T/C-20010402-00030; SAT-T/C-20010402-00031; SES-T/C-20010402-00736; SES-T/C-20010402-00740; SES-T/C-20010402-00741; SES-T/C-20010402-00742; SES-T/C-20010402-00743; SES-T/C-20010402-00744; ITC-T/C-20010402-00178; (0000413466); ISP-PDR-20010402-00017.

² FCC file numbers for the applications associated with Intelsat’s previous mitigation agreement include SAT-ASG-20210826-00117, SAT-ASG-20210827-00118, SAT-T/C-20210826-00114, SAT-MPL-20210826-00113, SAT-MPL-20210826-00115, SAT-MPL-20210826-00116, SES-ASG-20210907-01540, SES-ASG-20210907-01541, SES-ASG-20210907-01542, SES-T/C-20210827-01539, SES-T/C-20210827-01543, SES-ASG-20210826-01513, ITC-T/C-20210907-00131, IB Docket No. 21-375.

ARTICLE 1

DEFINITION OF TERMS

1.1 Definitions. As used in this NSA, capitalized terms shall be defined as set forth below; *provided that* capitalized terms used in these conditions and not defined in this Article 1 shall have the meanings assigned to them elsewhere in this Agreement.

- (a) “Access” means to, or the right or ability to, enter a location or physical space; or physically or logically undertake any of the following actions: (i) read, divert, copy, or otherwise obtain non-public information or technology from or about software, hardware, a system, or a network; (ii) add, edit, affect, or alter information or technology stored on or by software, hardware, a system, or a network; and (iii) alter or affect the physical or logical state of software, hardware, a system, or a network (*e.g.*, turning it on or off, changing configuration, removing or adding components or connections). As used in this Agreement, Access should be construed broadly to include rather than exclude conduct.
- (b) “Affiliate” means any entity that owns or controls Licensee (*e.g.* parent entities), each entity that is directly or indirectly owned or controlled by Licensee (*e.g.* subsidiaries), and each entity that is directly or indirectly under common ownership or control with Licensee (*e.g.* sister companies). “Owns” means having beneficial ownership of greater than 50% of an entity and “controls” means the ability to appoint the majority of the Board of Directors of an entity. “Affiliate” does not include SES S.A.’s shareholders.
- (c) “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
- (d) “Customer Proprietary Network Information” (“CPNI”) means, as set forth in 47 U.S.C. § 222(h)(1): (i) information that relates to the quantity, technical configuration, type, destination, location, and amount of use of a telecommunications service subscribed to by any customer of a telecommunications carrier, and that is made available to the carrier by the customer solely by virtue of the carrier-customer relationship and (ii) information contained in the bills pertaining to telephone exchange service or telephone toll service received by a customer of a carrier; except that such term does not include subscriber list information.
- (e) “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on organization prompting the need for response and recovery.

- (f) “Domestic Communications” (“DC”) means: (i) Wire Communications or Electronic Communications (whether stored or not) from one U.S. location, including its territories, to another U.S. location; (ii) the U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories; or (iii) all data and communications transmitted through Ground Elements located in the United States. In the event of uncertainty, communications should be presumed to be DC.
- (g) “Effective Date” means the date on which the Parties consummate the Transaction.
- (h) “Electronic Communication” has the meaning set forth in 18 U.S.C. § 2510(12).
- (i) “Electronic Surveillance” means:
 - (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. § 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
 - (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
 - (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
 - (iv) Acquisition of location-related information concerning a subscriber or facility;
 - (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
 - (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.
- (j) “Excluded Status Monitoring” means the use of receive-only Ground Elements to measure signal strength from a satellite and to provide such measurements to the NOC or SOC without decoding the signal. Excluded Status Monitoring is distinct from, and does not include, TT&C.
- (k) “Foreign” means non-United States or its territories.
- (l) “Foreign Country of Concern” means those countries so designated as of the NSA Effective Date under 42 U.S. Code § 19221 and its implementing regulations, as may be amended from time to time.

- (m) “Foreign Person with Access” means any Person who is not a U.S. citizen (including management, owners, employees, contractors, Service Provider employees, Principal Equipment provider employees, Other Third-Party employees, or any other natural person) who has unescorted Physical Access or Logical Access to: (i) U.S. Records; (ii) Principal Equipment (“PE”); (iii) Ground Elements; (iv) Lawful U.S. Process Records and Systems; or (v) DC. For the avoidance of doubt, this category includes, but is not limited to, the subcategory of “Foreign Persons with Privileged Access.” For the purposes of this NSA a person who holds both U.S. citizenship and the citizenship of another country shall not be deemed a Foreign Person with Access.
- (n) “Foreign Person with Privileged Access” means any Foreign Person with Access whose Access includes any of the following: (i) Access to Sensitive U.S. Records, to include: Sensitive Personal Data, social security numbers, financial account data (e.g., bank account numbers, credit card numbers), place of birth, health data, biometric data, U.S. Government customer records, and geolocation data; (ii) unescorted Physical Access or any Logical Access to a Protected Facility or System; (iii) unescorted Physical Access or any Logical Access to PE; (iv) Access to Lawful U.S. Process Records and Systems; or (v) Access to DC.
- (o) “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.
- (p) “Ground Elements” means the following facilities (or any systems or PE used to perform the functions of the following facilities):
 - (i) Ground/Earth Stations or Terminals, operated by Licensee or a Service Provider on Licensee’s behalf, that are used for TT&C of U.S. Licensed Satellites or in connection with DC;
 - (ii) Teleports used for TT&C of U.S. Licensed Satellites or in connection with DC;
 - (iii) Points of Presence (“PoPs”) used for TT&C of U.S. Licensed Satellites or in connection with DC;
 - (iv) NOCs;
 - (v) Satellite Operations Centers (“SOCs”);
 - (vi) Data Centers used for TT&C of U.S. Licensed Satellites or in connection with DC; and
 - (vii) any real property, building, structure, or room, where Licensee’s SOCs, NOCs, or PE are located or stored.
- (q) “Hosted Payload Services” are services wherein Licensee (i) hosts customer owned or controlled payloads on Licensee U.S. Licensed Satellites, or (ii) provides long-term leases, similar to indefeasible rights of use, to Licensee payload or spectrum on a U.S. Licensed Satellite, where the customer has the

ability to independently control the payload. This term shall not include such services directly provided to the U.S. Government or exclusively to the U.S. Government through a third party. "Control," for the purposes of this provision, does not include the mere ability to uplink or downlink traffic from the payload.

- (r) "Internet Protocol Detail Record" or "IPDR" means information about internet protocol-based usage and other activities that can be used by operation support systems and business systems by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.
- (s) "Lawful U.S. Process Records and Systems" means U.S. federal, state, or local demands including court orders, subpoenas, warrants, processes, directives, certificates, or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things or Access to PE, or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records including for example, and without limitation, CDRs and CPNI. This also includes responses to such demands and the systems used to receive, store, and process demands or responses to demands.
- (t) "Managed Service Provider" ("MSP") means any third party that has Access to PE for the purpose of:
 - (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
 - (ii) provision of DC or operation of PE, including: customer support; Operations Support Systems ("OSS"); Business Support Systems ("BSS"); Network Operations Centers ("NOCs"); information technology; cloud operations/services; 5G (SDN, NFV, Applications); and datacenter services and operations.
- (u) "Network Operations Center" or "NOC" means the locations and facilities (or systems performing the function of NOCs) used by Licensee for purposes of performing network or payload management, monitoring, maintenance, or other network operations or services for Licensee or its customers.
- (v) "Other Third Party" means an:
 - (i) "Other Third Party with Access," which means any Person (other than Licensee, Licensee Personnel, Service Providers, Service Provider Personnel, the U.S. Government, U.S. Government Personnel, U.S. Government Contractors, or U.S. Government Contractor Personnel) that has unescorted physical or any logical Access to Licensee's DC, PE, U.S. Lawful Process, Ground or Space Elements, or U.S. Records for any reason. This does not

include customers: (i) for whom Licensee is simply transporting traffic using its ground stations or satellites (which does not constitute Access); or (ii) who own or operate their own ground equipment to transport traffic to Licensee satellites (which does not constitute Access), unless such customers otherwise or independently have Access. Other Third Party with Access also does not include customers who can only: Access a customer service portal as a customer to (i) view information about the service(s) that they have contracted for from Licensee; or (ii) request or make defined changes to the service(s) that they have contracted for from Licensee. Further, Other Third Party with Access does not include parties with escorted Physical Access.

- (ii) “Other Third Party with Hosted Payload,” which means any Person (other than Licensee, the U.S. Government, or U.S. Government Contractors) for which Licensee provides Hosted Payload Services on U.S. Licensed Satellites.
- (w) “Person” means any individual or entity.
- (x) “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.
- (y) “Personal Verification Information” or “PVI” means:
 - (i) Full name (last, first, middle name);
 - (ii) All other names and aliases used;
 - (iii) Name of current employer;
 - (iv) Role/title at current employer;
 - (v) Business address;
 - (vi) Country and city of residence;
 - (vii) Residential address;
 - (viii) Date of birth, in the format MM/DD/YYYY;
 - (ix) Place of birth;
 - (x) U.S. Social Security number (where applicable);
 - (xi) All current or past citizenships;

- (xii) National identity number, including nationality, and expiration date (where applicable);
- (xiii) U.S. or foreign passport number (if more than one, all must be fully disclosed), nationality, and expiration date and, if a U.S. visa holder, the visa type and number, date and place of issuance, and expiration date; and
- (xiv) Dates and nature of foreign Government and foreign military service (where applicable); relevant contact information, including office and cell phone numbers, and email.
- (z) “Personnel” means any employee, director, officer, manager, agent, contractor, temporary staff, or other representative, and includes the respective successors or assigns of the foregoing.
- (aa) “Principal Equipment” or “PE” means equipment that:
 - (i) Supports Licensee’s provision of DC;
 - (ii) Is used in the satellite bus and payload;
 - (iii) Is used in controlling and monitoring the satellite bus, payload operations, Ground Elements, or mission operations;
 - (iv) Is used in providing Satellite Related Services and/or Hosted Payload Services;
 - (v) Is used in sending TT&C: (i) from Ground Elements to a satellite; (ii) between satellites; or (iii) over the ground network;
 - (vi) Is used in sending data or communications between the satellite and the Ground Elements, or customer terminals;
 - (vii) Is used in sending data or communications between satellites;
 - (viii) Is used in sending data or communications between an earth station and customer terminals, control centers, remote terminals;
 - (ix) Is used in sending data or communications over the ground network;
 - (x) Is used in analyzing, storing, processing, monitoring, managing, backing up, or collecting TT&C, PE configurations, metadata, logs, U.S. Records, data or communications; and
 - (xi) Is used in physically or logically securing and defending: (i) any corporate, management, or production network; (ii) the ground, space, and user segments; and (iii) the equipment used in analyzing, storing, processing,

monitoring, managing, protecting, backing up, or collecting TT&C, PE, PE configurations, metadata, logs, U.S. Records, data or communications.

As used in this Agreement, “Principal Equipment” should be construed broadly to include rather than exclude equipment, but shall not include: (i) equipment that is solely used in connection with Excluded Status Monitoring; (ii) equipment subcomponents (other than the satellite subcomponents described in Annex A to the Supply Chain Risk Management Policy established in Section 7.15); (iii) commercial-off-the-shelf (“COTS”) software or hardware used for common business functions, e.g., Microsoft Office; or (iv) equipment that is owned and operated by Licensee’s customers, including equipment that is sold, leased, or otherwise provided by Licensee to customers when Licensee is not operating or maintaining the equipment for the customer. At the request of the CMAs, this definition shall be supplemented in writing to address subsequent technological developments.

- (bb) “Protected Facility or System” means: (i) a defined area containing a Licensee’s NOCs, SOCs, and/or TT&C PE (e.g., Earth Stations capable of TT&C, ground control systems, TT&C Software); or (ii) any systems or PE used to perform the functions of a NOC, SOC, or TT&C.
- (cc) “Satellite Operations Center” or “SOC” means a facility (or systems performing the function of a SOC) that provides command and control for the satellite, receives TT&C data from the satellite, and requests and retrieves data as necessary.
- (dd) “Satellite Related Services” means non-communications-related services provided to other satellite operators for U.S. Licensed Satellites, where any communications signals used to provide the service relate only to satellite positioning in space rather than customer communications or data, such as TT&C and Transfer Orbit Support Services (“TOSS”), and In Orbit Testing (“IOT”).
- (ee) “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.
- (ff) “Security Incident” means:
 - (i) With respect to compliance with this NSA:
 - (A) Any known breach of this NSA;
 - (B) Any suspected breach of this NSA; or
 - (C) Any material violation of any approved Plan or Policy.

- (ii) With respect to the provision of DC; the operation of PE and Ground Elements; or the storage or maintenance of Lawful U.S. Process Records and Systems or U.S. Records:
 - (A) Any instance of suspected or confirmed intentional interference and/or jamming of TT&C or DC;
 - (B) Any instance of suspected or confirmed spoofing, hijacking, seizure of control, and/or unauthorized use or modification of PE, Ground Elements, or DC;
 - (C) Any instance of suspected or confirmed intentional damage or destruction of PE;
 - (D) Any unauthorized or unplanned shutoff of payload or bus systems constituting PE of more than 30 minutes (for purposes of clarity, unauthorized or unplanned shutoffs shall not include shutoffs caused by anomalies not caused by a Person, for example solar activity, space weather, meteor or orbital debris strikes, or equipment failures);
 - (E) Any unauthorized Access to, disclosure of, downloading of, or other compromise of the operation of, DC, PE, Ground Elements, Lawful U.S. Process and Systems, U.S. Records, or authentication information for any Person with Access to DC, PE, Ground Elements, Lawful U.S. Process and Systems, U.S. Records;
 - (F) Unauthorized physical Access or interference with PE or Ground Elements (e.g., cutting a cable, breaking into a NOC, physically connecting unauthorized devices to PE);
 - (G) Notification by a Service Provider or PE vendor of: 1) a compromise, breach, intrusion, incident, or unauthorized Access or disclosure affecting Licensee's U.S. Records, DC, PE, Lawful U.S. Process Records and Systems, Ground Elements, or U.S. Records; or 2) any critical exposure, threats, or vulnerabilities associated with the products or services provided to Licensee that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the Service Provider or PE vendor's supply chain;
 - (H) Identification of any critical vulnerabilities unpatched for more than fifteen **(15) days**;
 - (I) Notification by a Service Provider or Other Third Party that it has been acquired by an entity that would require notice under Section

5.3(d)(xiv)(E) or Section 5.6(h)(iii)(D) or 5.6(j)(vi)(E) of this NSA;
or

- (J) Any unauthorized Access to, or disclosure of, information obtained from or relating to U.S. Government entities.
- (iii) Any one or more of the following which affect the company's corporate, management, and production networks, or associated information systems:
 - (A) Unauthorized disruptions to service or denial of service;
 - (B) Unauthorized modifications to system hardware, firmware, or software, including but not limited to, the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - (C) Unplanned incidents that cause activation of Licensee's Cybersecurity Incident Response Plan;
 - (D) Persistent unauthorized Access attempts or Unauthorized Access;
or
 - (E) An unauthorized occurrence that (i) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (ii) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.
- (gg) "Security Policies and Plans" means the policies and plans Licensee adopts pursuant to Article 7.
- (hh) "Sensitive Personal Data" has the meaning set forth in 31 C.F.R. § 800.241.
- (ii) "Service Provider" means any service provider that supports Licensee's service offerings involving DC or in the United States, to include, but not be limited to:
 - (i) Any operation or service that could give the Service Provider physical or logical, read or read/write, Access to PE, Domestic Communications, Ground Elements, Lawful U.S. Process Records and Systems, or U.S. Records;
 - (ii) Site hosting, colocation, teleport, earth station, and other ground services, but which does not include a service provider that supplies only power or water;
 - (iii) Infrastructure maintenance, ground or satellite space / bandwidth capacity, monitoring, data center, cloud services;
 - (iv) Launch services;

- (v) Managed services (*e.g.*, an MSP);
- (vi) Monitor and control services;
- (vii) Satellite Control, Payload Control, SOC(s);
- (viii) Telemetry, Tracking, and Command systems;
- (ix) Payload systems;
- (x) NOC(s);
- (xi) Network maintenance or monitoring services;
- (xii) Network Security;
- (xiii) Billing or customer support services;
- (xiv) Analyzing, storing, processing, managing, backing up, or collecting metadata, logs, customer records, customer communications;
- (xv) Satellite Related Services;
- (xvi) Third party companies hosting payloads for Licensee;
- (xvii) Services used to fulfill the obligations of this NSA; and
- (xviii) Providing, installing, operating, managing, repairing, analyzing, securing, monitoring, or maintaining PE.

“Service Provider” shall not include: (i) a person or entity that provides services solely in connection with Excluded Status Monitoring; or (ii) equipment manufacturers, unless such equipment manufacturers provide ongoing services to Licensee following installation of the equipment into Licensee’s network.

- (jj) “Short Term Satellite Related Services” means Satellite Related Services for a U.S. Licensed Satellite provided by Licensee for less than 9 months.
- (kk) “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.
- (ll) “Telemetry, Tracking and Command” or “TT&C” means space telemetry, space tracking, and space telecommand as those terms are defined in 47 C.F.R. § 2.1(c).
- (mm) “United States” (or “U.S.”) means the several States and Territories, the District of Columbia, and the possessions of the United States.

- (nn) “U.S. Foreign Adversary” means those countries so designated as of the NSA Effective Date pursuant to Executive Order 13873 and its implementing regulations, as may be amended from time to time.
- (oo) “U.S. Government” means U.S. federal Government departments or agencies.
- (pp) “U.S. Government Contractor” means an entity with Access due to its performance of a contract with the U.S. Government and whose contract authorizes it to have the specified Access.
- (qq) “U.S. Licensed Satellite” means any SES or Intelsat satellite with a current FCC space station license or market access authorization.
- (rr) “U.S. Records” means Licensee’s customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by Licensee within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d) and 18 U.S.C. § 2709.
- (ss) “Wire Communication” has the meaning set forth in 18 U.S.C. § 2510(1).

ARTICLE 2

LAW ENFORCEMENT POINT OF CONTACT

2.1 Nomination Procedures. Within thirty **(30) days** following the Effective Date, Licensee shall nominate, in writing to the CMAs, an employee to be a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be responsible for ensuring Licensee’s compliance with the Lawful U.S. Process Records and Systems and Requests for Information requirements of the NSA. The appointment of the LEPOC shall be subject to the prior non-objection of the CMAs. The CMAs agree to object or non-object within thirty **(30) days** of receiving all necessary information regarding the LEPOC nominee. If the CMAs object to the nominated LEPOC, then Licensee shall nominate a different candidate within ten **(10) days** of receipt of any such objection, subject to the same procedures as the initial nomination. Licensee shall appoint the LEPOC within five **(5) days** following the non-objection of the CMAs. For the avoidance of doubt, Licensee may nominate the Security Officer to serve concurrently as the LEPOC or Alternate LEPOC.

2.2 Alternate LEPOC. Licensee may also nominate and maintain an Alternate LEPOC to fulfill the responsibilities of the LEPOC in the event of the LEPOC’s unavailability or to assist the LEPOC when needed. The Alternate LEPOC will be subject to the same review and non-objection procedures as the initial nomination of a LEPOC.

2.3 Nomination Submission. Contemporaneously with each nomination of a LEPOC or Alternate LEPOC, Licensee shall provide to the CMAs the PVI and a curriculum vitae for such nominee and any other information requested by the CMAs, in their sole discretion, to ensure that the nominee can effectively perform the functions of the position.

2.4 Eligibility Requirements. Licensee shall ensure that the LEPOC (and the Alternate LEPOC):

- (a) Is a U.S. citizen who has been subject to background checks appropriate to the level of seniority and sensitivity of the position, and physically resides in the United States for the duration of his or her responsibilities, unless the CMAs otherwise agree in writing;
- (b) Has the appropriate senior-level authority and necessary skills and resources to fulfill the responsibilities of his or her position and to ensure implementation of and compliance the Lawful U.S. Process Records and Systems and Requests for Information requirements of the NSA; and
- (c) Has Access to all Licensee's records, information, networks, and resources necessary to instruct, ensure, monitor, document, and report on compliance with the Lawful U.S. Process Records and Systems and Requests for Information requirements of the NSA.

2.5 Responsibilities. Licensee shall ensure that the LEPOC and the Alternate LEPOC serve as Licensee's point of contact for law enforcement and ensures the day-to-day compliance with Article 6 and, where possible, assists and supports Licensee's handling of Lawful U.S. Process Records and Systems.

2.6 Replacement, Removal, Vacancy. Licensee shall not remove or replace the LEPOC or Alternate LEPOC from that position, except for cause, without the prior non-objection of the CMAs, with the understanding that an employee appointed to either role may be employed on an at-will basis. Licensee shall notify the CMAs at least fifteen days **(15) days** before the removal of the LEPOC or Alternate LEPOC, unless removed for cause. The CMAs will object or non-object within fifteen **(15) days** following receipt of the notice of proposed removal. If the CMAs do not object within fifteen **(15) days** following receipt of the notice of proposed removal, the lack of action shall be deemed to be a non-objection. Any removal of the LEPOC and in the absence of Alternate LEPOC, shall only be done with the nomination of a replacement LEPOC to prevent a vacancy from taking place, subject to the same procedures as the initial nomination. Licensee shall notify the CMAs within seventy-two **(72) hours** of learning of: (i) the actual or planned resignation of the LEPOC or Alternate LEPOC; (ii) the incapacitation of LEPOC or Alternate LEPOC; (iii) the death of the LEPOC or Alternate LEPOC; (iv) any other leave that may interfere with the LEPOC or Alternate LEPOC fulfilling his or her responsibilities under the NSA; or (v) the termination of the LEPOC or Alternate LEPOC for cause. For these unforeseen circumstances, Licensee shall nominate a new candidate for the LEPOC or Alternate LEPOC position within seven **(7) days** of any such notification, subject to the same procedures as the initial nomination. An authorized representative of Licensee's Chief Legal Officer's office must submit a certification to the CMAs that the removal for cause is based on gross negligence, intentional misconduct, violation of applicable law, violation of company policy, or failure of the individual to perform his or her job duties. For the avoidance of doubt, Licensee shall not remove the LEPOC or Alternate LEPOC for any reason related to the LEPOC's or Alternate LEPOC's attempts to comply with, or ensure Licensee's compliance with, the NSA. In the event of a vacancy in the LEPOC position, the Alternate LEPOC or a qualified employee of SES

comporting with the eligibility requirements of this NSA shall temporarily serve as the LEPOC under this NSA until such time as the CMAs have approved a replacement LEPOC, subject to the nomination procedures in this Article 2.

2.7 CMAs' Direction to Remove. Should the CMAs, in their sole discretion, lose confidence in the ability of the LEPOC or Alternate LEPOC to perform his or her duties in connection with the NSA or determine that he or she has intentionally or through gross negligence failed to meet his or her obligations or has otherwise undermined the effectiveness of the NSA, the CMAs may direct Licensee to remove the LEPOC or Alternate LEPOC from their responsibilities and Licensee shall: (i) immediately remove (as applicable) the LEPOC or Alternate LEPOC from the position of LEPOC or alternate LEPOC; and (ii) if the LEPOC is removed, nominate a replacement LEPOC within seven **(7) days** of such notice, subject to the same procedures as the initial nomination.

2.8 Costs. Licensee shall be entirely responsible for all costs and expenses in connection with the LEPOC and the Alternate LEPOC.

2.9 Non-Interference. Licensee shall not interfere with, prevent, or otherwise impair, and shall ensure that its Personnel do not interfere with, prevent, or otherwise impair, the LEPOC or the Alternate LEPOC or any other position required under this NSA, in the performance of his or her duties and responsibilities in connection with the NSA.

ARTICLE 3

SECURITY OFFICER

3.1 Nomination Procedures. Within thirty **(30) days** following the Effective Date, Licensee shall nominate, in writing to the CMAs, an employee as the Security Officer (the "Security Officer") who will be responsible for ensuring Licensee's day-to-day compliance with the NSA and the Security Policies and Plans and serve as one of the primary points of contact for the CMAs regarding such compliance. The appointment of the Security Officer shall be subject to the prior non-objection of the CMAs. The CMAs agree to object or non-object within thirty **(30) days** of receiving all necessary information regarding the Security Officer nominee. If the CMAs object to the nominated Security Officer, then Licensee shall nominate a different candidate within ten **(10) days** of receipt of any such objection, subject to the same procedures as the initial nomination. Licensee shall appoint the Security Officer within five **(5) days** following the non-objection of the CMAs. For the avoidance of doubt, Licensee may nominate the LEPOC to serve concurrently as the Security Officer or Alternate Security Officer.

3.2 Alternate Security Officer. Licensee may, with approval from the CMAs, nominate an Alternate Security Officer to fulfill the responsibilities of the Security Officer in the event of the Security Officer's unavailability or to assist the Security Officer when needed oversee and ensure compliance with this NSA (the "Alternate Security Officer"). The Alternate Security Officer will be subject to the same review and non-objection procedures as the initial nomination of a Security Officer.

3.3 Nomination Submission. Contemporaneously with each nomination of a Security Officer or Alternate Security Officer, Licensee shall provide to the CMAs the PVI for such

nominee, contact information, curriculum vitae or similar professional synopsis of the nominee, and any other information requested by the CMAs, at the time of nomination and in a format that the CMAs will identify, to ensure that the nominee can effectively perform the functions of the position.

3.4 Eligibility Requirements. Licensee shall ensure that the Security Officer (and the Alternate Security Officer):

- (a) Is a U.S. citizen, who, to the knowledge of Licensee, is eligible for a U.S. Government security clearance at the “Secret” level or higher and physically resides in the United States for the duration of his or her responsibilities, unless the CMAs otherwise agree in writing;
- (b) Has the appropriate senior-level authority and necessary skills and resources to fulfill the responsibilities of his or her position and to ensure implementation of and compliance with the NSA on a daily operational basis; and
- (c) Has Access to all Licensee’s Personnel, records, information, networks, and resources necessary to instruct, ensure, monitor, document, and report on compliance with the NSA.

3.5 Responsibilities. Licensee shall ensure that the Security Officer, with assistance from the Alternate Security Officer:

- (a) Ensures day-to-day compliance with the NSA and serves as one of the primary points of contact for the CMAs regarding Licensee’s compliance with the NSA and Security Policies and Plans;
- (b) Shall be available twenty-four **(24) hours** per day, seven **(7) days** per week, to respond to any national security or law enforcement concerns that the CMAs may raise;
- (c) Shall be available to meet with the CMAs in person within the United States at a mutually agreeable date and location within seventy-two **(72) hours** of such request, including in a classified setting as necessary;
- (d) Identifies the duties and roles of relevant Personnel to ensure Licensee’s compliance with the NSA and the Security Policies and Plans;
- (e) Instructs all relevant Personnel of Licensee as to the requirements of the NSA and Security Policies and Plans, and provides training as necessary to ensure compliance with the NSA and facilitate prompt reporting of violations discovered by Personnel;
- (f) Shall provide reports to Licensee’s Board of Directors regarding NSA compliance matters at least every six **(6) months** and on an as needed basis, as determined by the Security Officer, the Security Officer can engage with members of the Board(s) of Directors about any NSA compliance concern;

- (g) Provides written responses to the CMAs within eight **(8) days** after receiving any inquiries from the CMAs and is available upon not less than three **(3) business days** of notice for discussions with the CMAs on matters relating to the enforcement of and compliance with the NSA or any other matter with respect to the NSA or Security Policies and Plans;
- (h) Ensures appropriate mechanisms for the establishment, implementation, review, and enforcement of Security Policies and Plans in accordance with the terms of the NSA;
- (i) Ensures that the Annual Reports and any information requested by the CMAs to enforce and monitor compliance with the NSA or Security Policies and Plans are submitted to the CMAs in accordance with the NSA;
- (j) Ensures Licensee's Personnel are required to report any violation or suspected violation of the NSA or Security Policies and Plans to the Security Officer within seventy-two **(72) hours** of the violation or suspected violation;
- (k) Thoroughly investigates any actual or suspected violation of the NSA promptly upon learning thereof and promptly takes all reasonable steps to rectify any actual violation of the NSA or Security Policies and Plans;
- (l) Implements policies that prohibit Licensee from retaliating against its Personnel for reporting any actual or suspected violations of the NSA or Security Policies and Plans to the Security Officer;
- (m) Ensures timely changes to new contracts or amendments to existing contracts with Service Providers, Other Third Parties, and PE vendors requiring them to agree to the conditions set forth in the Service Provider, Other Third Party, PE and any other applicable provisions of this Agreement; and
- (n) Creates and maintains records adequate to permit independent confirmation and audit of Licensee's compliance with the NSA and Security Policies and Plans.

3.6 Additional Responsibilities. Licensee shall ensure that if the Security Officer or Alternate Security Officer holds other titles and responsibilities within Licensee beyond serving as the Security Officer or Alternate Security Officer for the purposes of the NSA, such other responsibilities do not prevent such Security Officer or Alternate Security Officer from fully performing his or her duties as the Security Officer or Alternate Security Officer.

3.7 Replacement, Removal, Vacancy. Licensee shall not remove or replace the Security Officer or Alternate Security Officer from that position, except for cause, without the prior non-objection of the CMAs, with the understanding that an employee appointed to either role may be employed on an at-will basis. Licensee shall notify the CMAs at least fifteen days **(15) days** before the removal of the Security Officer or Alternate Security Officer, unless removed for cause. The CMAs will object or non-object within fifteen **(15) days** following receipt of the notice of proposed removal. Licensee agrees to not maintain a vacancy or suspension of the

Security Officer position for a period of more than fifteen **(15) days**. Any nomination of a replacement Security Officer shall be subject to the same procedures as the initial nomination. Licensee shall notify the CMAs within seventy-two **(72) hours** of learning of: (i) the actual or planned resignation of the Security Officer or Alternate Security Officer; (ii) the incapacitation of Security Officer or Alternate Security Officer; (iii) the death of the Security Officer or Alternate Security Officer; (iv) any other leave that may interfere with the Security Officer or Alternate Security Officer fulfilling his or her responsibilities under the NSA; or (v) the termination of the Security Officer or Alternate Security Officer for cause, and shall nominate a new candidate for the Security Officer or Alternate Security Officer position within fifteen **(15) days** of any such notification, subject to the same procedures as the initial nomination. An authorized representative of Licensee's Chief Legal Officer's office must submit a certification to the CMAs that the removal for cause is based on gross negligence, intentional misconduct, violation of applicable law, violation of company policy, or failure of the individual to perform his or her job duties. For the avoidance of doubt, Licensee shall not remove the Security Officer or Alternate Security Officer from that position for any reason related to the Security Officer's or Alternate Security Officer's attempts to comply with, or ensure Licensee's compliance with, the NSA. In the event of a vacancy in the Security Officer position, the Alternate Security Officer (if any) or a qualified employee of SES comporting with the eligibility requirements of this NSA shall temporarily serve as the Security Officer under this NSA until such time as the CMAs have approved a replacement Security Officer, subject to the nomination procedures in this Article 3.

3.8 CMAs' Direction to Remove. Should the CMAs, in their sole discretion, lose confidence in the ability of the Security Officer or Alternate Security Officer to perform his or her duties in connection with the NSA or determine that he or she has intentionally or through gross negligence failed to meet his or her obligations or has otherwise undermined the effectiveness of the NSA, the CMAs may direct Licensee to remove the Security Officer or Alternate Security Officer and Licensee shall: (i) immediately remove (as applicable) the Security Officer or Alternate Security Officer; and (ii) if the Security Officer is removed, nominate a replacement Security Officer within seven **(7) days** of such notice, subject to the same procedures as the initial nomination.

3.9 Costs. Licensee shall be entirely responsible for all costs and expenses in connection with the Security Officer and the Alternate Security Officer.

3.10 Non-Interference. Licensee shall not interfere with, prevent, or otherwise impair, and shall ensure that its Personnel do not interfere with, prevent, or otherwise impair, the Security Officer or the Alternate Security Officer or any other position required under this NSA, in the performance of his or her duties and responsibilities in connection with the NSA.

ARTICLE 4

OPERATIONS AND FACILITIES

4.1 Within ninety **(90) days** of the Effective Date, and, thereafter, annually in the Annual Report and within thirty **(30) days** upon the CMAs' request, Licensee shall make available the following:

- (a) Network management information comprised of: (i) a network map that includes physical and logical topology, including any terrestrial backhaul to and from Ground Elements other facilities housing PE; (ii) network and telecommunications architecture descriptions and associated descriptions of interconnection points and controlled gateways; (iii) network operational plans, processes, and procedures; (iv) identification, locations, and functions of any Ground Elements and Space Elements; (v) an organizational chart, to include specific reference to the names and positions of senior Licensee officials responsible for network management operations of Licensee, and/or senior officials of any third parties performing such duties on behalf of Licensee; and (vi) descriptions of interfaces and connections to Licensee for service offload, disaster recovery, or administrative functions; and
- (b) A complete list of Licensee customers that: (i) have Hosted Payloads on U.S. Licensed Satellites; (ii) are using Licensee services for DC; or (iii) are using U.S.-located earth stations to connect with Licensee's satellites.

4.2 Change in Satellite Services and Related Operations. Licensee shall notify the CMAs in writing at least thirty **(30) days** prior to: (i) implementing any material changes to its current portfolio of service offerings (including offering other services beyond its current service portfolio); (ii) launching or decommissioning satellites or payloads (except in the case of emergency decommissioning); (iii) operating ground stations at new teleports; or (iv) implementing new points of presence. Licensee shall provide a detailed description of any such proposed change, including the terms, conditions, individuals, and/or entities involved in making the change to the operations or services.

ARTICLE 5

PRINCIPAL EQUIPMENT, SERVICE PROVIDERS, TESTING, PERSONNEL, OTHER THIRD PARTIES, ACCESS LOCATIONS, U.S. RECORDS AND DC STORAGE, PROTECTED FACILITIES OR SYSTEMS, SHORT TERM SATELLITE RELATED SERVICES, THIRD-PARTY ASSESSMENT

5.1 Objection Resolution.

- (a) Unless otherwise specified, the CMAs may object or non-object to any notice submitted under this Article 5. If the CMAs object to a future action, Licensee shall not take the action unless the objection is withdrawn. Consistent with Section 9.4, if the CMAs object to a past action, Licensee shall work with the CMAs to address the CMAs' concerns to the CMAs' satisfaction, including, if requested, producing and executing a plan for the timely cessation of the objected to activity.
- (b) **Initial/Annual Submissions:** the CMAs will object or non-object within sixty **(60) days** of receipt of an initial or annual notice submitted pursuant to this Article 5.

- (c) **Any Other Submissions:** the CMAs will object or non-object within thirty **(30) days** of any other notice submitted pursuant to this Article 5.
- (d) If the CMAs seek additional information from Licensee, the period to object or non-object shall be extended by the number of days the CMAs await the requested information.
- (e) If the CMAs do not object within sixty **(60) days** following receipt of all necessary information for new submissions or material modifications under Sections 5.2(b) and (c), 5.3(b) and (c), and 5.5(b)(ii) and (c)(ii), as determined by the CMAs in their sole discretion, the lack of action shall be deemed to be a non-objection.

5.2 **Principal Equipment.**

- (a) **Initial/Annual List:** Licensee agrees to provide the CMAs a complete PE list within ninety **(90) days** of the Effective Date (“Initial PE List”) and annually with the Annual Report, including, but not limited to, any PE that received the CMAs’ non-objection pursuant to the Parties’ previous mitigation agreements. The Initial PE List shall flag any such PE that already received non-objection pursuant to SES and Intelsat’s previous mitigation agreements.
- (b) **New Make of Equipment:** Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to introducing any new PE of a different manufacturer/make than PE that has received non-objection pursuant to Section 5.2(a) and this section (b).
- (c) **Material Modifications:** Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to materially modifying any PE that has received non-objection pursuant Section 5.2(a) and (b). Material modifications include but are not limited to: moving approved PE to a different country not already approved by the CMAs for that type of PE, replacing any original logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software subcomponents with a different manufacturer’s subcomponents, and repurposing PE for use in Protected Facilities. Routine software updates and security patches are not material modifications. Further, the path, update, or version upgrade of any software, or the repair, replacement, maintenance, and version upgrade of hardware shall not qualify as a modification of such hardware or software provided that the forgoing does not result in the addition of any new PE into Licensee’s networks of a type or make that has not previously been noticed to and approved by the CMAs.
- (d) **Submission Requirements:** The Initial PE List submitted pursuant to Section 5.2(a) and any subsequent notices submitted pursuant to Sections 5.2(b) and

5.2(c) shall include the following information, in a format that the CMAs will identify:³

- (i) Manufacturer Information:
 - (A) Name;
 - (B) Business address;
 - (C) Employer Identification Number (“EIN”); and
 - (D) Webpage address URL.
- (ii) PE Information:
 - (A) Make;
 - (B) Model/version number;
 - (C) Function of item; and
 - (D) Country where PE will be located (if known at time of submission).
- (iii) Owner of item (if owned by a Service Provider or Other Third Party).
- (iv) Notice if the PE includes logic-bearing (e.g., readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern.
- (v) Notice if the PE includes logic-bearing (e.g., readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC’s List of Equipment and Services Covered by Section 2 of The Secure Networks Act (“FCC Covered List”), the Commerce Department’s Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*.
- (vi) Notice if the PE is not Supply Chain Security Management System (“SCS”) 9001 certified.
- (vii) Upon the CMAs’ request, Licensee will provide additional information about any PE.

³ Service Providers that provide PE or service PE should also be submitted under the Service Provider section.

- (viii) Licensee does not have to provide subcomponent information for satellites in operation as of the Effective Date.
- (e) **Time-Sensitive Modifications or Replacements:** For any time-sensitive material modification or replacement of PE with new PE of a different make that has not been previously approved that is undertaken in response to an unforeseen or uncontrollable event and is necessary to ensure continued operations, to provide services to customers in an emergency, or to meet a launch window, Licensee shall provide advance notice to the CMAs, if practicable. Licensee shall not proceed with such modifications or replacements without the concurrence of the Security Officer or Alternate Security Officer. Such modifications or replacements shall not involve any new PE that would require notice under Section 5.2(d)(iv) or (v). Where providing advance notice to the CMAs is impracticable, Licensee shall provide the CMAs with a detailed description of the material modification or replacement and the circumstances surrounding the need to conduct such activity without prior notice within three **(3) days** of beginning the material modification or replacement. This shall include the information on PE required in Section 5.2(d).
- (f) CMA objections under this Section will be handled pursuant to Section 5.1.

5.3 **Service Providers.**

- (a) **Initial/Annual List:** Licensee agrees to provide the CMAs with a complete list of Licensee's Service Providers within ninety **(90) days** of the Effective Date ("Initial Service Provider List") and annually with the Annual Report, including, but not limited to, any Service Provider that received the CMAs' non-objection pursuant to SES and Intelsat's previous mitigation agreements.
- (b) **New Service Providers:** Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to the use of any new Service Provider.
- (c) **Material Modifications:** Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to materially modifying a Service Provider relationship. Material modifications include changes to Sections 5.3(d)(ix) and (x). No notification is required for a reduction in Access.
- (d) **Submission Requirements:** The Initial Service Provider List submitted pursuant to 5.3(a) and any subsequent notices submitted pursuant to 5.3(b) and (c) shall include the following information for each Service Provider, in a format the CMAs will identify:
 - (i) Company name;
 - (ii) Business address;
 - (iii) EIN, if available;

- (iv) Webpage address URL, if available;
- (v) Country of incorporation;
- (vi) Principal place of business;
- (vii) Description of service provided;
- (viii) If a Service Provider received non-objection under SES or Intelsat's previous mitigation agreements, the date of the CMAs' non-objection;
- (ix) Description of Facilities, PE, Information, and/or Systems that will be Accessed (e.g., NOC, SOC, PE, DC, Lawful U.S. Process Records and Systems, or U.S. Records);
- (x) Type of Access (Physical or Logical; Read or Read/Write);
- (xi) The number of Service Provider's Foreign Persons with Access to PE, DC, Lawful U.S. Process Records and Systems, or U.S. Records; each country from which they have or will have Access; and the citizenship of the Foreign Persons with Access;
- (xii) PVI for any Foreign Persons with Privileged Access (with any that have already received non-objection pursuant to the previous mitigation agreements identified);
- (xiii) Notice if the Service Provider is owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern; and
- (xiv) Confirmation that the Service Provider is contractually required, or information detailing a timeline for the adoption of the contractual requirements for the Service Provider, to do the following:
 - (A) Screen Employees with Access (pursuant to Sections 5.5(a) and 7.11 of this Agreement);
 - (B) Report Security Incidents to Licensee (pursuant to Section 7.5);
 - (C) Inform Licensee of the countries from which Service Provider Personnel have Access, and inform Licensee more than thirty **(30) days** in advance of a change in the countries from which Service Provider Personnel will have Access;
 - (D) Update Licensee every three **(3) months** with the number of Foreign Persons with Access, their locations, and their citizenship;

- (E) Inform Licensee if the Service Provider is or becomes owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern;
 - (F) Ensure that Service Provider Foreign Persons with Privileged Access are reported to the CMAs pursuant to Section 5.5(c) of this Agreement; and
 - (G) Conform to Licensee's security policies regarding Service Provider Access.
- (e) Upon the CMAs' request, Licensee will provide additional information about any Service Provider.
 - (f) **Time-Sensitive Changes:** For any material modification or new Service Provider that is retained in response to an unforeseen, time-sensitive or uncontrollable event and is necessary to ensure continued operations, to provide services to customers during an emergency, or to meet a launch window, Licensee shall provide advance notice to the CMAs, if practicable. Licensee shall not proceed with such modifications or replacements without the concurrence of the Security Officer or Alternate Security Officer. Such actions shall not involve any new Service Provider that would require notice under Section 5.3(d)(xiii). Where providing advance notice to the CMAs is impracticable, Licensee shall provide the CMAs with a detailed description of the material modification or new Service Provider and the circumstances surrounding the need to conduct such activity without prior notice within three **(3) days** of beginning the material modification or replacement. This shall include the information on the new Service Provider required in Section 5.3(d).
 - (g) CMA objections under this Section will be handled pursuant to Section 5.1.

5.4 **Equipment and Service Provider Testing.**

- (a) Licensee shall provide the CMAs with at least thirty **(30) days'** advance notice prior to Licensee or Service Providers initiating any live, operational, or on-network testing using unmasked real customer data of any equipment or service provider that is proposed to be used as PE or a Service Provider and is not already on the PE or Service Provider lists. Nothing in this Section shall apply to testing performed in relation to services provided or to be provided to the U.S. Government. Licensee may seek a waiver pertaining to testing performed in relation to services provided or to be provided to Foreign Governments.
- (b) CMA objections under this Section will be handled pursuant to Section 5.1.

5.5 **Personnel.**

- (a) **All Personnel with Access:** Licensee shall screen, directly, or through a third party, all Personnel with Access to NOC, SOC, PE, DC, Ground Elements,

Lawful U.S. Process Records and Systems, or U.S. Records consistent with the Screening Policy in Section 7.11.

- (b) **Foreign Access Summary for All Foreign Persons with Access:** Licensee agrees to provide a Foreign Access Summary to the CMAs regarding all Foreign Persons with Access (including, but not limited to, Foreign employees, Foreign employees of Affiliates, Foreign employees of Service Providers, and Other Third Parties).
 - (i) Initial/Annual Submission: With respect to any Foreign Persons with Access as of the Effective Date, Licensee will provide a Foreign Access Summary within ninety **(90) days** of the Effective Date and annually with the Annual Report.
 - (ii) Updates Every Three (3) Months: Licensee will provide an updated Foreign Access Summary every three **(3) months**.
 - (iii) Submission Requirements: The Initial and Annual Foreign Access Summary submitted pursuant to Paragraph (i) and any quarterly updates submitted pursuant to (ii) shall include the following information, in a format the CMAs will identify:
 - (A) The number of Foreign Persons with Access and a description of all categories of Access, as provided in s 1.1(k) and 1.1(l) of this Agreement, including the specific numbers of Foreign Persons with Access that qualify as Foreign Persons with Privileged Access;
 - (B) The countr(y)(ies) from which the Foreign Persons with Access have Access; and
 - (C) The citizenship(s) of the Foreign Persons with Access.
 - (iv) Upon CMA request, Licensee agrees to provide PVI and additional information about the Access (in a format the CMAs will identify) for any Foreign Persons with Access.
- (c) **Foreign Persons with Privileged Access:** Licensee agrees to submit (in a format CMAs will identify), for all Foreign Persons with Privileged Access, PVI and additional information about the Access.
 - (i) Initial/Annual List: Licensee shall submit an initial list of all Foreign Persons with Privileged Access within ninety **(90) days** of the Effective Date, and an updated list annually with the Annual Report. The Initial List shall identify all Foreign Persons with Privileged Access and should note the date on which any such Foreign Persons received non-objection under SES's or Intelsat's previous mitigation agreements.

- (ii) New Privileged Access: Licensee will also submit any new Foreign Persons with Privileged Access no less than thirty **(30) days** prior to the date by which Licensee seeks to grant such Access.
- (iii) Submission Requirements: Submissions shall include (i) description of systems, networks, facilities, equipment, and records to which the individual has or would have Access, (ii) the type of Access (*e.g.*, unescorted physical, read, read/write), (iii) location from where the individual has such Access, (iv) a brief justification of the individual's need for Access, and (v) PVI.
- (d) CMA objections will be handled pursuant to Section 5.1.

5.6 Other Third Parties with Hosted Payloads or Access.

- (a) **Initial/Annual List**: Licensee agrees to provide the CMAs with an initial list of Other Third Parties within ninety **(90) days** of the Effective Date ("Initial Other Third Parties List") and annually with the Annual Report.
- (b) **New Other Third Parties**: Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to allowing any new Other Third Party Hosted Payload on Licensee's U.S. Licensed Satellites or otherwise allowing Other Third Parties with Access.
- (c) **Material Modifications**: Licensee agrees to notify the CMAs in writing at least thirty **(30) days** prior to materially modifying an Other Third-Party relationship. Material modifications include changes to Sections 5.6(i), 5.6(j)(ii) and (iii). No notification is required for a reduction in Access.
- (d) CMA objections will be handled pursuant to Section 5.1.
- (e) Licensee shall require all Other Third Parties to comply with the Other Third-Party obligations and will take reasonable measures to ensure Other Third-Party compliance. Licensee agrees to cooperate with the CMAs' efforts to resolve any national security, law enforcement, or Other Third-Party compliance concerns in connection with an Other Third Party's obligation that is identified by the CMAs. Specifically, if notified by the CMAs of potential non-compliance arising out of a failure to comply with the relevant Other Third-Party obligations, Licensee will notify the affected Other Third Party, providing that Other Third Party with notice and a time period set by the CMAs in which to resolve the issue. If the issue remains unresolved after that time period, Licensee shall, if required by the CMAs, suspend the Access or service to the extent deemed necessary by the CMAs until the issue is resolved to the CMAs' satisfaction. Licensee shall not be required to suspend services provided to the U.S. Government.
- (f) Nothing in this Section prohibits Licensee from performing an Other Third Party's obligation to the CMAs on the Other Third Party's behalf.

- (g) **Submission Requirements:** The Other Third Party lists submitted to the CMAs pursuant to Section 5.6(a), (b), and (c) shall include the following information for each Other Third Party, in a format the CMAs will identify:
- (i) Company name;
 - (ii) Business address;
 - (iii) EIN, if available;
 - (iv) Webpage address URL, if available;
 - (v) Country of incorporation;
 - (vi) Principal place of business;
 - (vii) Description of Other Third Party's relationship with Licensee; and
 - (viii) Whether the Other Third Party is owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary, or a Foreign Country of Concern.
- (h) **Additional Requirements for Other Third Parties with Hosted Payloads:**
- (i) Licensee will notify the CMAs within seventy-two **(72) hours** of learning the Other Third Party with Hosted Payload is or has become owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern.
 - (ii) Licensee will submit, initially:
 - (A) The FCC License(s) or Authorization(s) associated with the Hosted Payload and/or ground stations;
 - (B) The name of the satellite hosting the payload, its orbital location, and its coverage area;
 - (C) Any Existing Mitigation Agreement between the Other Third Party with Hosted Payload and the Committee; and
 - (D) PVI of all Ultimate Beneficial Owners of 5% or more of the Other Third Party with Hosted Payload to the extent known by Licensee after due inquiry with the Other Third Party with Hosted Payload.
 - (iii) Licensee shall certify initially and annually that the contracts governing the Other Third Party with Hosted Payload relationship require the Other Third Party with Hosted Payload to comply with the following obligations and certify continued compliance to Licensee annually:

- (A) The Other Third Party with Hosted Payload will not use (and has not in the past year used) equipment or services from providers on the FCC's Covered List in the payload or to control the payload from the ground;
 - (B) The Other Third Party with Hosted Payload will be (or has been in the past year) compliant with the Other Third Party with Hosted Payload Security Policy;
 - (C) The Other Third Party with Hosted Payload is not (and has not been in the past year) performing any network operation functions (*e.g.*, a NOC) for the Hosted Payload from any U.S. Foreign Adversary Countries or Countries of Concern; and
 - (D) The Other Third Party with Hosted Payload will inform Licensee within seventy-two **(72) hours** if the Other Third Party with Hosted Payload is or becomes owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern.
- (iv) If the Other Third Party with Hosted Payload cannot certify compliance with a requirement in (A) through (D) the Other Third Party with Hosted Payload shall explain why to the CMAs directly or through Licensee.
- (v) The requirements in (iii) or (iv) shall not apply to Other Third Parties with Hosted Payloads with their own mitigation agreement with the Committee. Licensee may request a waiver of the requirements in (iii) and (iv) for other Government-affiliated Other Third Parties.
- (i) In the event that the Other Third Party with Hosted Payload is a customer of Licensee for the provision of Hosted Payload Services on a U.S. Licensed Satellite as of the Effective Date, the Additional Requirements of subsection (ii), (iii), and (iv) do not apply to the existing contract.
- (j) **Additional Requirements for Other Third Parties with Access:**
 - (i) Details of why the Access is needed;
 - (ii) Description of Facilities, PE, Information, and/or Systems that will be Accessed (*e.g.*, NOC, SOC, PE, DC, Lawful U.S. Process Records and Systems, or U.S. Records);
 - (iii) Type of Access (Physical or Logical; Read or Read/Write);
 - (iv) The number of Foreign Persons with Access to PE, DC, Lawful U.S. Process Records and Systems, Ground Elements, or U.S. Records; each country from which they have or will have Access; and the citizenship of the Foreign Persons with Access;

- (v) PVI for any Foreign Persons with Privileged Access that have not already received non-objection pursuant to the previous mitigation agreements;
- (vi) Confirmation that the Other Third Party with Access is contractually required, or information detailing a timeline for the adoption of the contractual requirements for the Other Third Party, to do the following:
 - (A) Screen Personnel with Access (pursuant to Sections 5.5 and 7.11 of this NSA);
 - (B) Report Security Incidents to Licensee (pursuant to Section 7.5 of this NSA);
 - (C) Inform Licensee of the countries from which Other Third Party with Access Personnel have Access, and inform Licensee more than thirty **(30) days** in advance of a change in the countries from which Other Third Party Personnel will have Access;
 - (D) Every three **(3) months** update Licensee with the number of Foreign Persons with Access, their locations, and their countries of citizenship;
 - (E) Inform Licensee within forty-eight **(48) hours** if the Other Third Party with Access is or becomes owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern;
 - (F) Ensure that Other Third Party with Access Foreign Persons with Privileged Access are reported to the CMAs pursuant to Section 5.5 of this NSA; and
 - (G) Conform to Licensee's security policies regarding Other Third-Party Access.
- (vii) Licensee may request a waiver of the Additional Requirements for Government affiliated Other Third Parties with Access.
- (k) Upon the CMAs' request, Licensee will provide additional information about any Other Third Party.

5.7 Access Locations.

- (a) **Initial/Annual List:** Within ninety **(90) days** of the Effective Date and annually with the Annual Report, Licensee will provide a list of countries from which U.S. Records, Lawful U.S. Process Records and Systems, DC, Ground Elements, or PE are Accessed (by any Person, including but not limited to Personnel of Licensee and Service Provider Personnel) with details of the type of Access from each country.

- (b) **New Countries/Types of Access:** Licensee will notify the CMAs thirty **(30) days** in advance of permitting any Access to U.S. Records, Lawful U.S. Process Records and Systems, Ground Elements, DC, or PE from a country, when that country or type of Access from that country was not previously approved.
- (c) For travel of less than fifteen **(15) consecutive days** in any one country, Persons may have Access from such country if authorized by the Insider Threat Policy or any CMA-approved travel policy.
- (d) CMA objections will be handled pursuant to Section 5.1.

5.8 U.S. Records and DC: Storage and Backups.

- (a) **Initial/Annual List:** Licensee agrees to provide the CMAs with an initial list of storage locations for U.S. Records and DC (including any backups of the U.S. Records and DC) within ninety **(90) days** of the Effective Date and annually with the Annual Report.
- (b) **New Storage Locations:** Licensee agrees to notify the CMAs at least thirty **(30) days** prior to using new storage locations for U.S. Records and DC (including any backups of the U.S. Records and DC).
- (c) **Submission Requirements:** Such notice shall include:
 - (i) A description of the type of information to be stored in the location;
 - (ii) The custodian of the information (even if such custodian is Licensee);
 - (iii) The location where the information is to be stored;
 - (iv) Submission under the Service Provider and PE provisions of this Agreement for any Service Provider or PE used (e.g. providing data center, cloud, or backup services);
 - (v) Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location (if applicable); and
 - (vi) The factors considered in deciding to store that information in the new location (if applicable).
- (d) CMA objections will be handled pursuant to Section 5.1.

5.9 Protected Facilities or Systems.

- (a) **Initial/Annual List:** Within ninety **(90) days** of the Effective Date and annually in the Annual Report, Licensee shall submit to the CMAs a complete list of all Protected Facilities and Systems, including any backup facilities.

- (b) **New or Modified Protected Facilities or Systems:** Licensee shall submit information about any new, relocated, eliminated, or otherwise substantially changed Protected Facilities and Systems, including any backup facilities and systems, to the CMAs thirty **(30) days** prior to the change.
- (c) **Submission Requirements:** Information submitted under Sections 5.9(a) and (b) shall include details of the location, function, Access, Security, and operation of Protected Facilities and Systems. All Protected Facilities and Systems' PE, Foreign Personnel with Access, Service Providers, and Policies should be submitted under the relevant sections of this agreement
- (d) CMA objections will be handled pursuant to Section 5.1.

5.10 Short Term Satellite Related Services. Licensee shall disclose the Teleports, PE, and Service Providers used to provide Short Term Satellite Related Services to customers to the CMAs within thirty **(30) days** of beginning use. No other Section in Article 5, except for Section 5.11, applies to Short Term Satellite Related Services.

5.11 Third-Party Assessment.

- (a) Licensee shall undergo a one-time independent assessment ("Third-Party Assessment") of (i) the completeness and accuracy of Licensee's initial lists of deliverables and the methodology regarding how the lists were developed and how they are maintained and (ii) the sufficiency and completeness of the policies and plans required under this Agreement, to be conducted by an independent third-party ("Third-Party Assessor"), the findings of which will be included in a detailed report ("Assessment Report").
- (b) The Third-Party Assessment of Licensee's initial lists of deliverables shall include a review of the completeness and accuracy of the following:
 - (i) Section 4.1(a) Network management information;
 - (ii) Section 4.1(b) Customer Information;
 - (iii) Section 5.2(a) Initial PE List;
 - (iv) Section 5.3(a) Initial Service Provider List;
 - (v) Section 5.5(b) Foreign Persons with Access,
 - (vi) Section 5.5(c) Foreign Persons with Privileged Access;
 - (vii) Section 5.6(a) Initial Other Third Parties List;
 - (viii) Section 5.7 Access Location List;

- (ix) Section 5.8(a) list of storage locations for U.S. Records and DC (including any backups of the U.S. Records and DC);
 - (x) Section 5.9(a) Protected Facilities or Systems, including backup facilities; and
 - (xi) Section 5.10 Short Term Satellite Related Services.
- (c) The Third-Party Assessment of the policies and plans required under this Agreement shall include a review of the sufficiency and completeness of the following:
- (i) Section 7.6(a) Scheduled Audits and Assessments;
 - (ii) Section 7.7(a) Security Policies and Plans;
 - (iii) Section 7.11 Personnel Screening Policy;
 - (iv) Section 7.12 Cybersecurity Policy and Plan;
 - (v) Section 7.13 Physical Security Policy and Plan;
 - (vi) Section 7.14 Access Control Policy and Plans;
 - (vii) Section 7.15 Supply Chain Risk Management and Asset Management Policies and Plans;
 - (viii) Section 7.16 DC Routing Security Policy and Plan;
 - (ix) Section 7.17 Capacity Customer Security Policy or Plan;
 - (x) Section 7.18 Lawful U.S. Process Plan; and
 - (xi) Section 8.1 Integration Plan.
- (d) Within thirty **(30) days** of the Effective Date, Licensee shall nominate in writing to the CMAs an independent third-party to serve as the Third-Party Assessor. The appointment of the Third-Party Assessor shall be subject to the prior non-objection of the CMAs. Licensee shall provide sufficient information for the CMAs to evaluate the nominee, including:
- (i) A description of qualifications and credentials, which may include:
 - (A) A general overview of the operating capacity, the adequacy and availability of resources, and reputation in the relevant professional community;
 - (B) A description of the services to be provided, technical capabilities and expertise with the particular areas at issue in the NSA, and past

experience operating as a third-party provider in related matters, if any; and

- (C) A professional synopsis for core team members, including their education, training, licensing, honors, and relevant experience.
- (ii) Any current or prior contractual, fiduciary, or financial relationship with Licensee, or any known Affiliate(s) thereof;
- (iii) Any other information that the CMAs request in order to evaluate the qualifications and competency of a Third-Party Assessor nominee.
- (e) Within fifteen **(15) days** of the nomination, the CMAs will object or non-object to the Third-Party Assessor nominee. If the CMAs non-object to the nominee, Licensee shall engage the Third-Party Assessor within five **(5) days** of CMA non-objection.
- (f) If the CMAs object to the Third-Party Assessor nominee, Licensee shall nominate another third-party auditor nominee within thirty **(30) days** of such objection, subject to the approval process as for the initial nominee. If the CMAs object to the nomination of a supplemental third-party assessor nominee, Licensee shall nominate two additional nominees to the CMAs within fifteen **(15) days** from whom the CMAs may choose at their discretion.
- (g) Licensee shall ensure the selected Third-Party Assessor submits a draft plan that includes a detailed methodology, approach, scope, and timeline of the Third-Party Assessment (the "Assessment Plan") to the CMAs within fifteen **(15) days** following non-objection to the Third-Party Assessor. Licensee shall ensure that the Assessment Plan includes each of the following provisions:
 - (i) The Third-Party Assessor shall report directly to and owe a fiduciary duty to the CMAs;
 - (ii) In performing its duties under the Assessment Plan, the Third-Party Assessor shall prioritize the national security of the United States in the event of any real or perceived conflict or inconsistency with any other interests; and
 - (iii) In performing functions related to the NSA, the Third-Party Assessor shall adhere to the Assessment Plan and incorporate and abide by any additional guidance and protocols provided by the CMAs.
- (h) Within forty-five **(45) days** of the CMAs receiving the draft Assessment Plan, the CMAs will object or non-object to the draft Assessment Plan. If the CMAs object to the draft Assessment Plan, Licensee, with the Third-Party Assessor, shall resolve all concerns raised by the CMAs and re-submit the draft Assessment Plan within fifteen **(15) days**, subject to the same procedures as the initial submission. If the CMAs non-object to the Assessment Plan, the Third-Party Assessor will begin conducting the Third-Party Assessment as directed by the CMAs.

- (i) Licensee shall ensure that the executed engagement agreement with the Third-Party Assessor (“Assessment Agreement”) is provided to the CMAs within five **(5) days** of execution.
- (j) Licensee shall ensure that the Third-Party Assessor:
 - (i) Has its principal place of business in the United States and, absent the prior written consent of the CMAs, uses only U.S. citizens to complete the Third-Party Assessment;
 - (ii) Provides an index of all recommendations and work product shared with Licensee to the CMAs and complies with any CMA requests for records used by the Third-Party Assessor to prepare the Assessment Report; and
 - (iii) Does not solicit or form any new contractual, fiduciary, or financial relationships with Licensee or otherwise take any action that could affect, in fact or appearance, the Third-Party Assessor’s impartiality as determined by the CMAs without the prior written consent of the CMAs.
- (k) Licensee shall be solely responsible for any costs associated with any Third-Party Assessment. The CMAs, however, will consider avoidance of unreasonable costs as a factor in the scope of the Third-Party Assessment.
- (l) Licensee shall fully cooperate with the Third-Party Assessor and provide all information deemed necessary by the Third-Party Assessor to complete the Third-Party Assessment, including unrestricted Access to relevant Personnel, documents, PE, and records of non-privileged communications and work product (but excluding records of privileged communications and work product). Licensee shall provide the Third-Party Assessor with Access to Licensee’s facilities including Ground Elements, as deemed necessary by the Third-Party Assessor to conduct the Third-Party Assessment. For the avoidance of doubt, “privilege” in this Article refers to Attorney Client or Attorney Work Product Privilege. If Licensee objects to a request made by the Third-Party Assessor for communications that Licensee deems privileged, each objection and the reasoning for each objection shall be noted by the Third-Party Assessor in the Assessment Report.
- (m) Licensee shall not interfere with, prevent, or otherwise impair the Third-Party Assessor in the performance of its duties and responsibilities in connection with the NSA. Licensee shall not take any adverse or retaliatory action against the Third-Party Assessor in response to, or because of, the Third-Party Assessor’s performance of its duties and responsibilities in connection with the NSA, including by withholding payment due to the Third-Party Assessor.
- (n) Licensee shall ensure that the Third-Party Assessor completes the Third-Party Assessment consistent with the Assessment Plan, including all timelines therein, unless the CMAs, in their discretion, grant an extension or waive certain requirements in writing.

- (o) The Third-Party Assessor will promptly deliver to the CMAs and Licensee the full Assessment Report and related information generated or gathered during the Assessor's review that relate directly to Licensee's preparation of its lists of initial deliverables, and its methodology for doing so. The Third-Party Assessor will meet independently with the CMAs upon request to discuss any findings or recommendations identified in the Third-Party Assessment. Licensee shall work in good faith with the CMAs regarding how to remediate any concern identified in the Assessment Report.
- (p) Licensee shall ensure that the Third-Party Assessor takes all necessary and appropriate steps to address promptly, and in writing, any questions or concerns of the CMAs with the substance of the Assessment Report, including completing supplemental reports if the Assessment Report is not complete or consistent with the CMAs' expectations.
- (q) Licensee shall review and consider all recommendations made by the Third-Party Assessor. Implementation shall be undertaken by Licensee following consultation with the CMAs, the Third-Party Assessor, and Licensee or, if Licensee believes implementation of a certain recommendation is not feasible or warranted, promptly offer a written explanation of why such recommendation cannot or should not be implemented and discuss, in good faith, alternative proposals with the CMAs. Licensee will make changes as necessary to address any compliance concerns raised by the Third-Party Assessor and the CMAs. Licensee shall update the CMAs on the implementation of all such recommendations until such time as those recommendations are fully implemented.
- (r) Licensee shall not remove the Third-Party Assessor without the prior written consent of the CMAs. Should the CMAs, in their sole discretion, lose confidence in the Third-Party Assessor, the CMAs may direct Licensee to remove the Third-Party Assessor. Within five **(5) days** following receipt of such direction, Licensee shall remove the Third-Party Assessor, and within thirty **(30) days** following receipt of such direction, shall nominate a replacement Third-Party Assessor, subject to the same procedures as the initial nomination.

ARTICLE 6

LAWFUL U.S. PROCESS AND REQUESTS FOR INFORMATION

6.1 Licensee agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process demands. Licensee further agrees to certify to the CMAs its compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-1010, and its implementing regulations as well as the terms of this Article 6 within thirty **(30) days** from the Effective Date.

6.2 Licensee agrees to provide notice of any material modification to its lawful intercept capabilities to the CMAs within thirty **(30) days** of such modification and will re-certify its

compliance with CALEA no more than sixty **(60) days** following its notice to the CMAs of any material new facilities, services, or capabilities.

6.3 Upon receipt of any Lawful U.S. Process demand, Licensee agrees to place any and all information responsive to the demand within the territorial boundaries of the United States and otherwise provide such responsive information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process demand.

6.4 Licensee agrees not to provide, or otherwise allow the disclosure of or Access to, U.S. Records, PE that is located in the United States or its territories, PE that is located outside the United States or its territories and is used to support Licensee's services, DC, or any DC-related call content or call data information to any Foreign Government, unaffiliated Foreign entity, or any Foreign Person other than a Foreign Person who has been screened, without prior written consent of the CMAs or a court of competent jurisdiction in the United States, provided that nothing in this provision shall be construed to prevent Licensee from allowing users to Access their own account information through standard Access tools or customer care requests.

6.5 Licensee agrees not to disclose the receipt of Lawful U.S. Process demands, responses to Lawful U.S. Process demands, or compliance with Lawful U.S. Process, to any Foreign Government, unaffiliated Foreign entity, or any Person not authorized under the Lawful U.S. Process, without prior written consent of the CMAs or a court of competent jurisdiction in the United States.

6.6 Licensee agrees to refer any requests for information described in Section 6.4 of this NSA from a Foreign Person or a Foreign Government, including any legal process from a Foreign Government, to the CMAs as soon as possible, but in no event later than five **(5) days** after such a request, or legal process, is received by, or made known to, Licensee, unless disclosure of the request, or legal process, would be in violation of U.S. law or in violation of an order of a court of competent jurisdiction in the United States.

6.7 Subject to applicable law, Licensee agrees not to comply with such requests from Foreign Governments and Foreign Persons without prior written consent of the CMAs or an order of a court of competent jurisdiction in the United States.

6.8 Licensee agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

ARTICLE 7

SECURITY AND SECURITY POLICIES & PLANS

7.1 Licensee agrees to prevent unauthorized Access to or unlawful use of U.S. Records, DC, PE, and Lawful U.S. Process Records and Systems and to prevent the unauthorized disclosure of information relating to U.S. Records, DC, PE, Ground Elements, and Lawful U.S. Process Records and Systems.

7.2 Licensee further agrees to take timely and appropriate remedial measures, including as recommended by Cyber and Infrastructure Security Agency (“CISA”) (or a similar U.S. authority), to recover from any cyber or supply chain incident and mitigate vulnerabilities.

7.3 Licensee agrees to pursue participation, as appropriate, in public-private partnerships to protect U.S. critical infrastructure, such as Space Information Sharing and Analysis Centers (“ISAC”) and InfraGard.

7.4 Licensee shall configure all necessary systems in the U.S. to ensure the NOC or SOC can suspend, interrupt or mute the radio signal or DC.

7.5 Reporting Incidents and Breaches.

- (a) Licensee agrees to report to CMAs promptly, and in any event no later than seventy-two **(72) hours**, after Licensee learns of information that indicates a known or suspected Security Incident, or is informed by a Service Provider, Other Third Party, or PE vendor of a Security Incident, or sooner when required by statute or regulations.
- (b) Licensee agrees to require any Service Provider, Other Third Party, or PE vendor to disclose to Licensee any Security Incident within seventy-two **(72) hours** of after it learns of information that indicates a known or suspected Security Incident, or sooner when required by statute or regulations.
- (c) Upon the CMAs’ request, Licensee shall submit in writing a follow-up report describing in greater detail the incident or breach and Licensee’s steps to remediate the incident or breach to the CMAs within fifteen **(15) days** of discovery of the relevant conduct. Licensee shall also submit in writing supplementary information regarding any follow-up reports of internal or third-party investigation or review of the incident, if any, including, but not limited to, any steps taken to mitigate the damage and prevent further Security Incidents or breaches. Licensee shall remediate any incidents or breaches reported pursuant to this provision to the satisfaction of the CMAs.
- (d) Licensee agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven **(7) business days** after reasonable determination that a Person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through Licensee’s network or that of a third party used by Licensee, and shall electronically report the matter to the central reporting facility through the following portal:
<https://www.cpnireporting.gov>.

7.6 Security Audits and Assessments.

- (a) **Scheduled Audits and Assessments:** Within forty-five **(45) days** of the Effective Date, Licensee will submit for CMA objection or non-objection a risk-informed schedule to routinely perform third-party and internal audits and assessments

related to the physical and logical Security of ground, space, and user elements and systems.⁴

- (b) **Requested Audits and Assessments:** Within forty-five **(45) days** of CMA request, Licensee shall submit third-party security auditors or assessors as Service Providers, sharing scope and methodology requirements and an engagement letter. Licensee will retain such auditor or assessor upon CMA non-objection and give the auditor or assessor Access to such systems, records, Personnel, and metadata necessary to audit or assess the physical and logical Security of ground, user, or space elements, DC, PE, U.S. Records, or Lawful U.S. Process Records and Systems. Such Requested Audits or Assessments may examine areas including, but not limited to: cybersecurity, physical or logical security, network diagram verification; pen testing; supply chain and asset management; Access management; Lawful U.S. Process compliance and Security; incident response and remediation; and traffic routing.
- (c) **Submissions for Audits and Assessments:** Licensee will share a copy of any scope and methodology requirements and an engagement letter; the final audit report or assessment; any recommendations made by the auditors or assessors; and any steps taken or planned by Licensee to address those recommendations.
- (d) **Timelines:** For Scheduled Audits and Assessments, a copy shall be submitted to CMAs no less than annually with the Annual Report. For Requested Audits and Assessments a copy shall be submitted to the CMAs within six **(6) months** of CMA non-objection to the Service Provider.
- (e) **Costs:** Licensee shall be responsible for all costs associated with Audits and Assessments.
- (f) Nothing in this Section 7.6 shall prevent the CMAs from requesting a formal neutral third-party audit under Section 8.5 of this Agreement of Licensee's compliance with the terms of this NSA and each of their previous mitigation agreements, and any policies and plans implemented thereunder.

7.7 **Security Policies and Plans.**

- (a) Licensee must maintain Security Policies and Plans to protect the confidentiality, integrity, and availability of DC, PE, U.S. Records, Ground Elements, and Lawful U.S. Process Records and Systems. The drafting and implementation of such Security Policies and Plans shall be overseen by the Security Officer and must contain administrative, technical, and physical safeguards consistent with best practices to address contemporary risk. Such Security Policies and Plans shall include those detailed in Sections 7.11 to 7.18, and any other Security Policies and Plans that Licensee or CMAs view necessary to protect the confidentiality, integrity, and availability of DC, PE, U.S. Records, Ground Elements, and Lawful

⁴ Such a third-party auditor or assessor shall be submitted as a Service Provider.

U.S. Process Records and Systems. Licensee may merge different Security Policies and Plans, as long as it explains to CMAs how all required components of each plan detailed below are covered in the combined Security Policies and Plans.

- (b) **CMAs' Review:** Within ninety (90) days of the Effective Date and annually with the Annual Report, Licensee shall submit to the CMAs copies of all Security Policies and Plans required by this NSA. CMAs will object or non-object to those Policies and Plans within ninety (90) days of receipt.
- (c) Upon the CMAs' review of each initial or revised draft, Licensee shall address any CMA comments to the CMAs' satisfaction and re-submit the revised draft Policy or Plan within thirty (30) days following receipt of comments from the CMAs, unless the CMAs agree in writing to an extension of the response time in their sole discretion.
- (d) Licensee shall adopt each policy or plan within thirty (30) days of non-objection by the CMAs. Licensee shall fully implement and maintain each of the Plans and Policies, as non-objected to by the CMAs.
- (e) Licensee agrees that it will annually review and, when appropriate to conform with evolving best practices and address changing risks, and to address CMA concerns, update the Plans or Policies. The Security Officer will certify in the Annual Report that annual reviews have been conducted and all necessary updates have been made. Any amendment to, or waiver of, any of the Policies or Plans shall be subject to the same procedures as the initial review by the CMAs.
- (f) Licensee will develop a risk informed schedule, submitted to the CMAs for non-objection within ninety (90) days of the Effective Date, to routinely assess the technical implementation and effectiveness of those Plans or Policies and share those assessments with the CMAs upon request.

7.8 Instruction of Obligations. Licensee shall instruct appropriate officers, employees, contractors, and agents as to Licensee's obligations under this NSA and the Security Policies and Plans, including an individual's duty to report any violation or suspected violation, and to issue periodic reminders of such obligations. Licensee shall issue initial instructions in writing and provide appropriate live or virtual training within ninety (90) days of the Effective Date, and Licensee shall submit a copy of such instructions to the CMAs at the same time. The training must be provided in the native language of, or in a language that is understood by, the trainee. Licensee shall update these instructions and provide training annually thereafter; and within fourteen (14) days of onboarding relevant officers, Personnel with Access, and Service Providers. Licensee shall also ensure that all affected Persons and entities (i) receive an updated copy of and training on the Security Policies and Plans within thirty (30) days of adoption of the Security Policies and Plans or, if applicable, within thirty (30) days of being hired by Licensee, and (ii) receive refresher training annually thereafter. The Security Officer will certify annually in the Annual Report that the required training was completed in the past year.

7.9 Compliance. At all times, Licensee shall comply with each of the Security Policies or Plans, which must be consistent with the NSA. The failure of the CMAs to raise an issue with Security Policies or Plans or any other report, information, or correspondence received by the CMAs in connection with the NSA shall not constitute approval by the CMAs or preclude the CMAs' ability to take enforcement action, in the CMAs' discretion. Compliance with any Security Policy or Plan may be audited pursuant to Section 8.5.

7.10 Costs. Licensee shall be responsible for all costs associated with developing, implementing, and providing training on the Security Policies and Plans.

7.11 Personnel Screening Policy. Licensee shall submit to the CMAs a draft of a Personnel Screening Policy, that will include background investigations, public criminal records checks, or other analogous means to ascertain an individual's trustworthiness, subject to applicable law. Licensee shall conduct background and criminal records checks described in this Section 7.11 on previously Screened Personnel at least every five **(5) years**.

7.12 Cybersecurity Policy and Plan. Licensee shall submit to the CMAs a draft of a Cybersecurity Policy (the "Cybersecurity Policy") that meets or exceeds best practices recommended by the National Institute of Standards and Technology ("NIST") Cybersecurity Framework for securing space segment (NIST-IR8270), user segment (NIST-IR8323), and ground segment (NIST-IR8401), the International Organization for Standardization ("ISO"), the Cybersecurity and Infrastructure Security Agency ("CISA"), the Federal Communications Commission, or, with the CMAs' prior consent, another standards organization. For the avoidance of doubt, nothing in this Cybersecurity Policy and Plan is intended to limit, alter, or constitute a waiver of any cybersecurity requirements under the Federal Acquisition Regulations. Such plan shall be implemented under the direction of the Security Officer. Licensee shall ensure that the Cybersecurity Policy and Plan also includes, but it is not limited to:

- (a) A detailed plan and timeline to meet any of the NIST, CISA, or FCC standards Licensee has not yet implemented;
- (b) A plan to implement and maintain, to the extent technically feasible, a zero-trust approach to network segmentation;
- (c) Plans for vulnerability identification, mitigation, disclosure, and reporting; remote Access; maintenance and retention of system logs; change management; backups; and protection of Lawful U.S. Process Records and Systems, U.S. Records, PE, and DC;
- (d) Provisions for the inventory of authorized devices and applications, secure configurations of systems and devices, data recovery, Security training, Access controls, log controls, and penetration testing for space, ground, and user segments;
- (e) Requirements for the use of up-to-date, NIST approved encryption protocols, or provides specific additional mitigating measures for the use of outdated encryption protocols;

- (f) Provisions for the permitted use, Security, and monitoring of PE;
- (g) Provisions for the maintenance and regularly review and revision, as necessary, a risk-assessment program reasonably designed to identify, assess, prioritize, and manage material security risks;
- (h) Provisions for the maintenance, operation, and testing of intrusion prevention and detection systems, endpoint protection systems, threat monitoring systems, or similar technologies reasonably designed to detect and restrict unauthorized Access or connections to, and anomalous activities within, Licensee's systems;
- (i) An Incident Response Plan, including plans for preparation, detection and analysis, containment, eradication, and recovery, and post-incident activity, including a restoration plan and identification of when an incident requires reporting to CISA, Space ISAC, or federal law enforcement; and
- (j) Specifies the roles and responsibilities for each element of the Cybersecurity Policy.

7.13 Physical Security Policy and Plan.

- (a) Licensee shall take all practicable measures to physically secure Ground Elements.
- (b) Licensee shall submit a Physical Security Policy and Plan setting forth its physical Security measures for Ground Elements. Such policy will describe physical Security measures adopted for the protection and monitoring of the Ground Elements and PE.
- (c) Licensee shall not allow unescorted Access to a Ground Element or PE by any Personnel or entities not authorized under this Agreement.

7.14 Access Control Policy and Plan. Licensee shall submit its Access Control Plan and Policy, that will establish the Access control mechanisms and procedures by which Physical and Logical Access is restricted consistent with this Agreement. To include, but not limited to:

- (a) Implementation of the principles of zero-trust and least privilege;
- (b) The use of phishing-resistant Multi-Factor Authentication and minimum password requirements;
- (c) Remote Access Security and Insider Threat policies to ensure Access is secure, geographically limited, and monitored for unusual activity;
- (d) The prompt termination of Access when it is no longer needed;
- (e) As part of the Access Control Plan, Licensee shall include policies governing Service Provider and Other Third Party Access; and

- (f) As part of the Access Control Plan, Licensee shall submit a draft Visitation Control Plan (the “VCP”) that governs the circumstances by which any individual who is not otherwise authorized under this Agreement may visit a Ground Element. To include:
 - (i) Requirements and procedures for visitors to be escorted at all times by an individual who has authorized physical Access;
 - (ii) Procedures for the collection maintenance, and retention of visitor records (e.g., visitor logs, copies of visitor identification, etc.); and
 - (iii) A requirement for the Security Officer and Third-Party Auditor, if requested by the CMAs, to review Access records on a quarterly basis to ensure that compliance with the NSA and that unauthorized Access has not occurred.

7.15 Supply Chain Risk Management and Asset Management Policies and Plans.

Licensee shall submit draft Supply Chain Risk Management (“SCRM”) and Asset Management Plan and Policies to the CMAs. These documents shall at least specifically contain formalized policies and procedures designed to:

- (a) Establish a SCRM framework of best practices such as those set forth in NIST SP 800-161r1 Cybersecurity Supply Chain Risk Management Practices for Systems and Organizations;
- (b) Identify the ownership and control of PE manufacturers and Service Providers;
- (c) Identify the location Service Provider Employees with Access;
- (d) Maintain an up-to-date database of procured hardware software and services that are required for all business operations, and further identify systems that provide critical information or functions, and which systems require remote Access capabilities;
- (e) Identify suppliers and suppliers’ sources where possible, and further identify suppliers of critical components;
- (f) Establish a verification process that ensures suppliers maintain best practices for Security and SCRM practices;
- (g) Secure the manufacturing, assembly, integration, testing, pre-launch, and launch of satellites;
- (h) Create an annex of satellite subcomponents to be disclosed as PE;
- (i) Identify vulnerabilities and timely patch assets;
- (j) Timely phase out end-of-life equipment, or adopt a compensating control; and
- (k) Implement other Licensee obligations under the NSA.

7.16 DC Routing Security Policy and Plan. Licensee shall submit a draft DC Routing Policy and Plan, detailing the process for making DC routing decisions, assessing the Security of various routes, and ensuring DC is not hijacked or misrouted. Such plan shall also detail how

Licensee can promptly and effectively interrupt, in whole or in part, traffic to and from the United States.

7.17 Customer Security Policy or Plan. Licensee shall submit a draft Customer Security Policy or Plan outlining Licensee's minimum customer Security requirements for each type of customer.

7.18 Lawful U.S. Process Plan. Licensee shall submit a plan for complying with its lawful process obligations set forth in Article 6 and protecting Lawful U.S. Process Records and Systems.

ARTICLE 8

OVERSIGHT AND REPORTING OBLIGATIONS

8.1 Integration Plan. No later than ninety (90) days following the Effective Date, Licensee shall provide a report on Licensee's integration plans (including timelines for integration), similar to one that Licensee would provide to its Board of Directors. Licensee shall provide updates at least quarterly on the integration progress, similar to ones that Licensee would provide to its Board of Directors, until such time that Licensee states that integration is complete. Licensee shall respond to the CMAs' questions and concerns regarding the Integration Plan or subsequent updates, and provide notice of material changes to the plan between quarterly updates, as necessary.

8.2 Changes in Ownership and Business Operations. Licensee agrees to provide the CMAs notice of any material changes to Licensee's business, including but not limited to corporate structure changes involving Licensee entities that hold FCC licenses or the ultimate parent company, ownership changes (other than pro forma transactions),⁵ corporate name changes for the entities holding FCC licenses or the ultimate parent company, significant business model changes, corporate headquarter location changes, or business operation location changes; debts to foreign Government-associated entities, strategic partnerships, joint ventures, mergers and acquisitions, no less than thirty (30) days in advance of such change. Notice under this Section will, as applicable:

- (a) Identify the entity or individual(s) acquiring control (specifying the name, addresses, and telephone numbers of the entity or individual(s));

⁵ For the purposes of this paragraph, "ownership changes" includes: (i) a change in control of Licensee, or (ii) any new investment by, or change in existing rights of, any non-U.S. individual or non-U.S. entity holding five percent or greater equity interest in Licensee that results in such entity obtaining a right to: (a) manage or control the activities of Licensee; (b) appoint one or more members to a board of directors or similar governing board of Licensee; (c) exercise voting interests in Licensee; and/or (d) gain Access to Licensee's DC, Ground Elements, PE, Lawful U.S. Process, or U.S. Records. In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in Licensee of five percent or more, Licensee shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Licensee no later than the end of the following calendar month.

- (b) Identify the beneficial owners of any such increased or prospective increased ownership interest in Licensee by the entity or individual(s) (specifying the name, addresses, and telephone numbers of each beneficial owner);
- (c) Quantify the amount of ownership interest that the entity or individual(s) has or likely will obtain in Licensee and, if applicable, the basis for its prospective control of Licensee; and
- (d) Include other information relevant to the change or requested by the CMAs.

8.3 Bankruptcy. Licensee shall provide the CMAs notice within five (5) days of SES S.A. initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of reorganizing, refinancing, or otherwise seeking relief from all or some of its debts. For the avoidance of doubt, this requirement does not apply to corporate refinancing outside such legal proceedings.

8.4 Annual Report. On the anniversary of the Effective Date, Licensee shall submit to the CMAs a report assessing Licensee's compliance with the terms of this NSA for the preceding year. The report shall include:

- (a) The names and contact information of the Security Officer and LEPOC and any alternates;
- (b) Updated organizational chart showing all owners with a five percent or greater ownership interest in Licensee;
- (c) Description of Licensee's handling of DC, Lawful U.S. Process Records and Systems, and U.S. Records (*i.e.*, whether handled properly and in accordance with the assurances contained herein, including compliance with CALEA and other U.S. lawful interception statutes, regulations, and requirements);
- (d) Updated Operations and Facilities information, as described in Article 4, noting any changes during the reporting period;
- (e) Updated Lists of the information required in Article 5, flagging any changes that occurred during the reporting period;
- (f) A copy of the then-current Security Policies and Plans adopted in accordance with this NSA, and a summary of any changes during the reporting period and the reasons therefor, along with a certification from the Security Officer annual reviews of the Security Policies and Plans have been conducted and all necessary updates have been made;
- (g) Notice if Licensee has used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their PE, or other systems supporting DC, PE, Lawful U.S. Process, or U.S. Records, that was designed, produced, or maintained by suppliers owned or

controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary or a Foreign Country of Concern;

- (h) Notice if Licensee has used in the past year, or plan to use in the future, products or services from an entity listed on the FCC's Covered List (*see* FCC, *List of Equipment and Services Covered by Section 2 of the Secure Networks Act*, <https://www.fcc.gov/supplychain/coveredlist>)⁶ or the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 *et seq.*;
- (i) A summary of any events that occurred during the reporting period that will or reasonably could impact the effectiveness of or compliance with this NSA;
- (j) A list of all license applications filed in the FCC's licensing databases in the prior year, excluding pro forma notices, and a copy of these filings if requested by the CMAs;
- (k) A list of any Security Incidents during the prior year, including any failures to comply with the NSA discovered during the preparation of the Annual Report, with a discussion of what steps have been or will be taken to prevent such acts from occurring in the future;⁷
- (l) An updated Integration Plan pursuant to 8.1; and
- (m) A certification by the Security Officer of Licensee's compliance with the NSA and that there have been no previously unreported Security Incidents or violations of this NSA.

8.5 Third-Party Audit. Beginning on the Effective Date, at their sole discretion, but no more frequently than once every calendar year unless an initial audit for that year is found by the CMAs to have been unsatisfactory, the CMAs may request a third-party audit of Licensee's compliance with the terms of this NSA and each of the Parties' previous mitigation agreements, and any policies or plans implemented thereunder (the "Third-Party Audit"). In connection with the Third-Party Audit, Licensee shall do the following:

- (a) Within forty-five **(45) days** of the CMAs requesting a Third-Party Audit, Licensee shall nominate a candidate to serve as third-party auditor that will be subject to CMA non-objection (the "Third-Party Auditor"). Licensee shall provide sufficient information for the CMAs to assess each of the candidates, including:

⁶ *See also* Section 2(a) of the Secure and Trusted Communications Networks Act of 2019, Pub. L. No. 116-124, 133 Stat. 158 (2020) (codified as amended at 47 U.S.C. §§ 1601–09); 47 C.F.R. § 1.50000 *et seq.*

⁷ In addition to noting a compliance violation in the Annual Report, Licensee must also separately submit a Security Incident report as required in the Reporting Incidents and Breaches section. If the violation was failure to make a submission under Article 5, the missing submissions should be made with the Security Incident report, not in the Annual Report.

- (i) A description of qualifications and credentials, which may include:
 - (A) A general overview of the operating capacity, the adequacy and availability of resources, and reputation in the relevant professional community;
 - (B) A description of the services to be provided, technical capabilities and expertise with the particular area(s) at issue in the NSA, and past experience operating as a Third-Party Auditor, if any; and
 - (C) A professional synopsis for core team members, including their education, training, licensing, honors, and relevant experience.
 - (ii) Any current or prior contractual, fiduciary, or financial relationship with Licensee, or any known Affiliate(s) thereof; and
 - (iii) Any other information that the CMAs request in order to evaluate the qualifications and competency of a third-party auditor candidate.
- (b) Within thirty **(30) days** of the nomination, the CMAs will object or non-object to the nominated third-party auditor candidate. If the CMAs non-object to the candidate, the candidate will serve as the Third-Party Auditor.
 - (c) If the CMAs object to the nominated third-party auditor candidates, Licensee shall nominate another third-party auditor candidate within thirty **(30) days** of such objection, subject to the approval process as for the initial candidate. If the CMAs object to the nomination of a supplemental third-party auditor candidate, Licensee shall nominate two additional candidates to the CMAs within fifteen **(15) days** from whom the CMAs may choose at their discretion.
 - (d) Licensee shall engage the Third-Party Auditor within five **(5) days** of CMA non-objection.
 - (e) Licensee shall ensure the selected Third-Party Auditor submits a draft plan that includes a detailed methodology, approach, scope, and timeline of the Third-Party Audit (the “Audit Plan”) to the CMAs within fifteen **(15) days** following non-objection to the Third-Party Auditor. Licensee shall ensure that the Audit Plan includes each of the following provisions:
 - (i) The Third-Party Auditor shall report directly to and owe a fiduciary duty to the CMAs;
 - (ii) In performing its duties under the Audit Agreement, the Third-Party Auditor shall prioritize the national security of the United States in the event of any real or perceived conflict or inconsistency with any other interests; and

- (iii) In performing functions related to the NSA, the Third-Party Auditor shall adhere to the Audit Plan and incorporate and abide by any additional guidance and protocols provided by the CMAs.
- (f) Within forty-five **(45) days** of the CMAs receiving the draft Audit Plan, the CMAs will object or non-object to the draft Audit Plan. If the CMAs object to the draft Audit Plan, Licensee, with the Third-Party Auditor, shall resolve all concerns raised by the CMAs and re-submit the draft Audit Plan within fifteen **(15) days**, subject to the same procedures as the initial submission. If the CMAs non-object to the Audit Plan, the Third-Party Auditor will begin conducting the Third-Party Audit as directed by the CMAs.
- (g) Licensee shall ensure that the executed engagement agreement with the Third-Party Auditor (“Audit Agreement”) is provided to the CMAs within five **(5) days** of execution.
- (h) Licensee shall ensure that the Third-Party Auditor:
 - (i) Has its principal place of business in the United States and, absent the prior written consent of the CMAs, uses only U.S. citizens to complete the Audit;
 - (ii) Provides an index of all recommendations and work product shared with Licensee to the CMAs and complies with any CMA requests for records used by the Third-Party Auditor to prepare the Audit Report; and
 - (iii) Does not solicit or form any new contractual, fiduciary, or financial relationships with Licensee or otherwise take any action that could affect, in fact or appearance, the Third-Party Auditor’s impartiality as determined by the CMAs without the prior written consent of the CMAs.
- (i) Licensee shall be solely responsible for any costs associated with any Third-Party Audit carried out pursuant to Section 8.5. The CMAs, however, will consider avoidance of unreasonable costs as a factor when exercising their rights under this Section 8.5.
- (j) Licensee shall fully cooperate with the Third-Party Auditor and provide all information deemed necessary by the Third-Party Auditor to complete the Third-Party Audit, including unrestricted Access to relevant Personnel, documents, PE, and records of non-privileged communications and work product (but excluding records of privileged communications and work product). Licensee shall provide the Third-Party Auditor with Access to Licensee’s facilities; including Ground Elements, as deemed necessary by the Third-Party Auditor to conduct the Third-Party Audit. For the avoidance of doubt, “privilege” in this Article refers to Attorney Client or Attorney Work Product Privilege. If Licensee objects to a request made by the Third-Party Auditor for communications that Licensee deems privileged, each objection and the reasoning for each objection shall be noted by the Third-Party Auditor in the Audit Report.

- (k) Licensee shall not interfere with, prevent, or otherwise impair the Third-Party Auditor in the performance of its duties and responsibilities in connection with the NSA. Licensee shall not take any adverse or retaliatory action against the Third-Party Auditor in response to, or because of, the Third-Party Auditor's performance of its duties and responsibilities in connection with the NSA, including by withholding payment due to the Third-Party Auditor.
- (l) Licensee shall ensure that the Third-Party Auditor completes the Third-Party Audit consistent with the Audit Plan, including all timelines therein, unless the CMAs, in their discretion, grant an extension or waive certain requirements in writing.
- (m) The Third-Party Auditor will promptly deliver to the CMAs and Licensee the full audit report ("Audit Report") and related information generated or gathered during its review that relate directly to Licensee's compliance with the terms of this NSA and security policies promulgated thereunder. The Third-Party Auditor will meet independently with the CMAs upon request to discuss any recommendations identified in the Third-Party Audit. Licensee shall work in good faith with the CMAs regarding how to remediate any concern identified in the Audit Report.
- (n) Licensee shall ensure that the Third-Party Auditor takes all necessary and appropriate steps to address promptly, and in writing, any questions or concerns of the CMAs with the substance of the Audit Report, including completing supplemental reports if the Audit Report is not complete or consistent with the CMAs' expectations.
- (o) Licensee shall review and consider all recommendations made by the Third-Party Auditor and upon request of the CMAs shall implement any recommendations made by the Third-Party Auditor as soon as practicable and in accordance with a feasible timeline as determined by the CMAs. Such implementation shall be undertaken by Licensee following consultation with the CMAs, the Third-Party Auditor, and Licensee or, if Licensee believes implementation of a certain recommendation is not feasible or warranted, promptly offer a written explanation of why such recommendation cannot or should not be implemented and discuss, in good faith, alternative proposals with the CMAs. Licensee will make changes as necessary to address any compliance concerns raised by the Third-Party Auditor and the CMAs. Licensee shall update the CMAs on the implementation of all such recommendations until such time as those recommendations are fully implemented.
- (p) Licensee shall not remove the Third-Party Auditor without the prior written consent of the CMAs. Should the CMAs, in their sole discretion, lose confidence in the Third-Party Auditor, the CMAs may direct Licensee to remove the Third-Party Auditor. Within five **(5) days** following receipt of such direction, Licensee shall remove the Third-Party Auditor, and within thirty **(30) days** following

receipt of such direction, shall nominate a replacement Third-Party Auditor, subject to the same procedures as the initial nomination.

8.6 Consultation and Visitation.

- (a) Licensee shall meet and confer with the CMAs and to resolve to the satisfaction of the CMAs any concerns the CMAs may raise regarding compliance with this NSA.
- (b) Licensee shall negotiate in good faith to resolve to the satisfaction of the CMAs any national security or law enforcement concerns the CMAs may raise with respect to any matters set forth in this NSA.
- (c) Licensee shall, upon two **(2) business days'** advance notice, except when due to exigent circumstances such advance notice is not practicable, permit the CMAs to visit any of Licensee's facilities that are or have been used for discharging Licensee's obligations under this NSA to conduct on-site reviews to verify the implementation of and compliance with the terms of this NSA. Site visits shall not occur on Saturdays, Sundays and federal holidays except when due to exigent circumstances that require a site visit on such days or when otherwise agreed to by the CMAs and Licensee. Subject to applicable law and consistent with security requirements, during such visits, Licensee shall cooperate with the requests of the CMAs to make available documents, information, facilities, and Personnel necessary to verify compliance with the terms of this NSA on the understanding that when advance notice of a visit is not provided, Licensee shall provide the CMAs with Access to documents, information, facilities, and Personnel within one business day of such an Access request.

ARTICLE 9

GENERAL PROVISIONS

9.1 Successors and Assigns. This NSA shall inure to the benefit of, and shall be binding upon, Licensee and its successors, assigns, subsidiaries, and Affiliates; for purposes of this Agreement, successors and assigns shall include any corporate name changes. Licensee shall not assign any obligation under this NSA without the prior written consent of the CMAs, and Licensee shall remain responsible for the activities of any Person to whom it assigns any obligation under this agreement.

9.2 Breach. Licensee agrees that, in the event that Licensee breaches the commitments set forth in this NSA, to include taking action contrary to a CMA objection, the Committee may recommend that the FCC modify, condition, revoke, cancel, terminate, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to Licensee or any successors-in-interest, in addition to pursuing any other remedy available at law or equity.

9.3 Licensee understands that this NSA does not relieve it from any consequences or liability for any breach of the Parties' previous agreements that occurred while those agreements were in effect.

9.4 Changed Circumstances. If, after this Agreement takes effect, the CMAs or Licensee believe that changed circumstances warrant modifying or terminating this NSA (including if the CMAs find that the terms of this NSA are inadequate or no longer necessary to address any national security or law enforcement risks), Licensee and the CMAs agree to negotiate in good faith to modify this Agreement to resolve the CMAs' concerns, according deference to the CMAs' views on the need for modification. If new or additional national security or law enforcement risks develop with respect to Licensee submissions under this Agreement or Licensee's previous mitigation agreements that have received a non-objection from the CMA, Licensee agrees to resolve the CMAs' concerns to the CMAs' satisfaction. For example, action to resolve the CMAs' concerns could include, but is not limited to, the removal and replacement of PE with other PE to which the CMAs non-object, or the modification or termination of existing agreements Licensee has with Service Providers. Rejection of a proposed modification alone shall not constitute evidence of a failure to negotiate in good faith. However, consistent with Executive Order 13913, failure to resolve national security or law enforcement concerns may result in a recommendation from the Committee that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Licensee or its successors-in-interest, or any other appropriate enforcement action required to address the risks. Except as otherwise provided in this NSA, it may only be modified or terminated by written agreement signed by Licensee and the CMAs.

9.5 Administrative Updates.

- (a) Licensee agrees that the Committee, in its sole discretion, may make non-substantive administrative updates to the NSA to add, modify, or remove the CMAs monitoring this NSA.
- (b) With Licensee's agreement, the Committee may make other non-substantive administrative updates to the NSA, to include and/or to account for changes in 1) corporate ownership, mergers and acquisitions, structure, names, and license numbers; and 2) Committee structure. The Committee will consider any non-substantive administrative updates proposed by Licensee.

9.6 Choice of Law. This Agreement shall be governed by and interpreted according to the Federal laws of the United States.

9.7 Forum Selection. A civil action brought by any Party to this NSA for judicial relief with respect to any dispute or matter whatsoever arising under, in connection with, or incident to, this Agreement shall be brought, if at all, in the U.S. District Court for the District of Columbia.

9.8 Costs. Licensee shall be entirely responsible for all costs and expenses in connection with complying with the conditions of this NSA.

9.9 Compliance with Applicable Law. Nothing in this NSA is intended to excuse Licensee from its obligations to comply with all applicable legal requirements and obligations, including

all applicable statutes, regulations, requirements, or orders. Licensee shall not be deemed to be in breach of this NSA with respect to any action or inaction that is taken in compliance with applicable law, provided that Licensee shall notify the CMAs of any perceived conflict between their NSA obligations and applicable law prior to taking any such action or inaction. If Licensee believes there is a conflict between its obligations in this NSA and applicable law, Licensee shall notify the CMAs in writing of such determination. Licensee will meet and confer with the CMAs to discuss any such perceived conflict. In the event that Licensee and CMAs agree that there is a conflict between this NSA and applicable law, Licensee and the CMAs will work in good faith to resolve such conflict (including, if necessary, through waiver or modification of requirements in the NSA). Notwithstanding the foregoing, Licensee acknowledges and agrees that this Section 9.9 does not prevent the CMAs from seeking modification or termination of this NSA pursuant to Section 9.2 or 9.3.

9.10 Computing Time. In computing any time period pursuant to this NSA, the below rules apply.

- (a) For any period stated in days:
 - (i) The day of the event that triggers the period is excluded;
 - (ii) Every day thereafter is counted (except where business days are specified), including intermediate Saturdays, Sundays, and federal holidays, except for those days that are tolled pursuant to Section 9.10(c); and
 - (iii) The last day of the period is included, but if the last day is a Saturday, Sunday, or federal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or federal holiday.
- (b) For any period stated in hours:
 - (i) Begin counting immediately on the occurrence of the event that triggers the period;
 - (ii) Count every hour, including hours during intermediate Saturdays, Sundays, and federal holidays, except for those hours that are tolled pursuant to Section 9.10(c); and
 - (iii) If the period would end on a Saturday, Sunday, or federal holiday, the period continues to run until the same time on the next day that is not a Saturday, Sunday, or federal holiday.
- (c) Any objection/non-objection provision applicable to the CMAs pursuant to this NSA shall be tolled during a lapse in appropriations or any time when the Federal Government in the greater Washington, D.C. area is closed.
- (d) If the CMAs seek additional information from Licensee within any objection/non-objection period applicable to the CMAs under this NSA, such objection/non-

objection period shall be extended by the number of days the CMAs awaited the requested information.

9.11 Other Laws. Nothing in this NSA is intended to limit, alter, or constitute a waiver of:

- (a) Any obligation imposed on Licensee by any U.S. federal, state, territory, or local law;
- (b) Any enforcement authority available under any U.S. federal, state, territory, or local law;
- (c) The sovereign immunity of the United States; or
- (d) Any authority or jurisdiction the U.S. Government may possess over the activities of Licensee or its agents located within or outside the United States.

9.12 Notification of Non-Grant of Applications. If, for whatever reason (denial, withdrawal, or other such circumstances), Licensee becomes aware that the Applications are no longer pending before the FCC without having been granted, then Licensee shall notify the CMAs within twenty-four **(24) hours** of Licensee's awareness of such development, including the reason the Applications are no longer pending.

9.13 Effectiveness of Agreement. Except as otherwise specifically provided in this Agreement, the obligations imposed and rights conferred by this Agreement shall take effect upon the Effective Date. If the Parties fail to receive all authorizations from the FCC in connection with the Applications (whether due to denial, withdrawal, or other such circumstances), or if the Transaction is not consummated, this NSA shall automatically terminate as to Intelsat but will remain in full force and effect as to SES. SES will remain bound by the terms of this NSA with respect to its existing FCC licenses and authorizations, and Intelsat will remain bound by its 2022 mitigation agreement. In that event, submission due dates for SES under this NSA will run from the date the FCC denies the relevant Applications or Licensee notifies the FCC the transfer has been cancelled.

9.14 Notices. Following the Effective Date, all notices and other communications given or made relating to this NSA shall be in writing and shall be deemed to have been duly given or made as of the date of receipt and shall be sent by electronic mail addressed to Licensee's designated representative at the addresses shown below, or to such other representatives at such other addresses as Licensee may designate in accordance with this Section:

If to the CMAs:

U.S. Department of Homeland Security
Under Secretary for Strategy, Policy and Plans
Office of Strategy, Policy, and Plans
Mail Stop 0445
2707 Martin Luther King Avenue, SE
Washington, D.C. 20528
compliance@hq.dhs.gov

U.S. Department of Justice
Attention: Deputy Chief, Telecommunications &
Deputy Chief, Compliance and Enforcement
National Security Division
Foreign Investment Review Section
175 N Street, NE
Washington, D.C. 20530
Compliance.Telecom@usdoj.gov

U.S. Department of Defense
Office of Foreign Investment Review, Director
Undersecretary of Acquisition and Sustainment
1400 Defense Pentagon
Washington, D.C. 20301
osd.mc-alex.ousd-a-s.list.team-telecom-monitoring@mail.mil

If to SES S.A.:

Nancy Eskenazi
Senior Vice President, Global Legal & Regulatory Affairs
SES
1129 20th Street, NW
Suite 1000
Washington, DC 20036
nancy.eskenazi@ses.com

cc: Security Officer (once appointed)

9.15 Direct Communications. Licensee acknowledges that the CMAs may communicate directly with the Security Officer, Third-Party Auditor and his/her staff, and any other point of contact designated by Licensee. Licensee further acknowledges that the CMAs may communicate directly with any Personnel from Licensee who initiate or are included on communications with the CMAs regarding the NSA. These acknowledgments shall in no way prohibit or otherwise inhibit Licensee from consulting with, obtaining advice from, or communicating with the CMAs through counsel.

9.16 Notice Regarding Legal Representation. Licensee shall identify to the CMAs the contact information for any legal representation regarding compliance with the obligations under this NSA, whether outside legal counsel or internal general counsel, within five **(5) days** of the Effective Date, and thereafter shall inform the CMAs within five **(5) days** of any change to such legal representation.

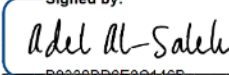
9.17 Severability. The provisions of this Agreement shall be severable and if any provision hereof or the application of such provision under any circumstances is held invalid by a court of competent jurisdiction, it shall not affect any other provision of this Agreement or the application of such other provision.

9.18 Waiver. The provisions of this Agreement may be waived at the CMAs' discretion. The failure of the CMAs to insist on strict performance of any of the provisions of this Agreement, or to exercise any right granted herein, shall not be construed as a relinquishment or future waiver; rather, the provision or right shall continue in full force. No waiver by the CMAs of any provision of, or right under, this Agreement shall be valid unless it is in writing and expressly provides for the waiver of a specified requirement under a particular provision of this Agreement.

9.19 Disclosure. Licensee agrees to permit disclosure of confidential and highly confidential information submitted to the FCC pursuant to 47 C.F.R. § 0.442 to federal Government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913. The CMAs will handle any confidential information shared with CMAs by Licensee consistent with Section 8 of Executive Order 13913 and all applicable law.

9.20 Counterparts. This NSA may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same NSA.

For and on behalf of SES S.A.

By: 
B9382BD2E8C146B...

Name: Adel Al-Saleh

Title: President & CEO

Date: July 2, 2025

For the U.S. Department of Homeland Security

By: 

Name: Christopher C. Pratt

Title: Senior Official Performing the Duties of the Under Secretary

Date: 1/2/25

For the U.S. Department of Justice

By: Tyler Wood

Name: Tyler Wood

Title: Deputy Chief, Foreign Investment Review Section, National Security Division

Date: 02 July 2025

For the U.S. Department of Defense

WONG.LOUIS.P.15

By: 21217940

Digitally signed by
WONG.LOUIS.P.1521217940
Date: 2025.07.02 09:34:38 -04'00'

Name: Louis Wong

Title: Branch Chief, Team Telecom

Date: 02 July 2025